



DEPARTMENT OF POLITICAL SCIENCE

THE SILENCE OF THE PUBLIC: COURT-CURBING AND EXECUTIVE AGGRANDIZEMENT IN BUKELE'S EL SALVADOR

A quantitative analysis on citizens' tolerance of executive overreach after the May 1, 2021, dismissal of the Constitutional Chamber judges

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Abstract

This study examines whether formal court-curbing reforms make citizens more tolerant of executive aggrandizement. As a theoretical framework, it suggests an interplay of three mutually reinforcing mechanisms — public detachment from the judiciary, delegitimization of courts by anti-pluralist and populist actors, and the presentation of court-curbing reforms as efforts to restore a dysfunctional institution — which jointly conceal the stakes of judicial erosion and immobilize public reaction. This argument may be particularly salient, though not exclusively applicable, in contexts of partisan de-institutionalization, where citizens evaluate political actors through their performance and perceived trade-offs rather than partisanship. The argument is tested on El Salvador's May 1, 2021, dismissal of the Constitutional Chamber judges under President Nayib Bukele. Using an Unexpected Event During Survey Design (UESD), this study compares respondents interviewed within five days before and after the reform during the 2021 AmericasBarometer fieldwork. The main analysis using OLS regression brings largely null findings, as once controls are included, exposure to the reform does not significantly affect tolerance of executive overreach, and the moderating effect of presidential approval is also insignificant. However, presidential approval predicts tolerance strongly and consistently across the 2018, 2021 and 2023 AmericasBarometer waves. Results suggest that the theorized mechanisms had already shaped public attitudes long before the reform, while performance-based evaluation becomes a determinant in contexts of partisan disruption. These findings illustrate that the conditions under which citizens can act as the last bulwark against democratic erosion are narrower than expected.

Keywords: court-curbing, executive aggrandizement, performance-based evaluation, El Salvador

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Abbreviations

ARENA – Nationalist Republican Alliance (Alianza Republicana Nacionalista)

FMLN – Farabundo Martí National Liberation Front (Frente Farabundo Martí para la Liberación Nacional)

LAC – Latin America and the Caribbean

LAPOP – Latin American Public Opinion Project

MORENA – National Regeneration Movement (Movimiento Regeneración Nacional, Mexico)

PDC – Christian Democratic Party (Partido Demócrata Cristiano)

PiS – Law and Justice Party (Prawo i Sprawiedliwość)

UESD – Unexpected Event During Survey Design

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1. Introduction

On May 1, 2021, within hours of being sworn in, El Salvador's new Legislative Assembly—dominated by President Nayib Bukele's *Nuevas Ideas* party—dismissed all five Constitutional Chamber judges and replaced them with loyalists. The procedure was widely characterized as unconstitutional (Hernández, 2025; Llanos & Tibi-Weber, 2023; Meléndez-Sánchez, 2021). Bukele's approval, however, rose.

This pattern is not new. Unlike previous episodes of democratic breakdown marked by coups or revolutions, contemporary anti-pluralist incumbents often rely on legal and institutional means to gradually dismantle checks and balances, while preserving a façade of legality (Aydın-Çakır & Driscoll, 2025; Bermeo, 2016). Constitutional amendments, institutional restructurings and legislative reforms are deployed to undermine authority of opposition parties, oversight bodies, the press, and, most consequentially, the courts. As the principal counter-majoritarian guardian of horizontal accountability—the authority to oversee and sanction unlawful actions by other branches of government (O'Donnell, 1998, p.119)—the judiciary has often been targeted by incumbents seeking to entrench their power (Castillo-Ortiz, 2019; Petrov, 2024).

Citizens often regarded as the last bulwark against such democratic violations (Wunsch et al., 2025), may appear immobilized or as in El Salvador actively supportive. Existing literature explains tolerance or sanctioning of court-curbing and democratic transgressions centered on judicial legitimacy (Caldeira & Gibson, 1992), partisan alignment (Bartels & Kramon, 2020; Leeper & Slothuus, 2014), divergent understandings of democracy (Kaftan & Gessler, 2025; Wunsch et al., 2025), education and political awareness (Aydın-Çakır & Şekercioğlu, 2016; Magalhães & Garoupa, 2024) and epistemic vigilance—the cognitive mechanisms through which citizens assess the substance of high-stakes reforms on checks and balances and the trustworthiness of the actors proposing them (Mazepus, 2025).

Existing literature extensively examines why citizens sanction or tolerate democratic violations. However, we still know little about how citizens perceive and relate to the judiciary itself and, whether they feel sufficiently connected to the institution to defend it against executive overreach (Kosař, 2025).

Given these dynamics, this thesis examines the following research question: “*Does formal court-curbing render citizens more tolerant of executive overreach?*”. This study examines whether citizens perceive formal court-curbing reforms as violation when three dynamics interact. First, the judiciary may already be seen as a remote elite disconnected from citizens’ daily struggles. Second, anti-pluralist and populist actors strategically capitalize on these perceptions by framing courts as inefficient, politicized, corrupt and opposed to the “popular will”. Third, once the judiciary’s image is distorted, formal court-curbing reforms — dressed in legalistic and complex language — are presented as a justification to restore a dysfunctional institution. Together, these mechanisms conceal the stakes of judicial erosion and immobilize public reaction to executive overreach.

This pattern may be particularly applicable in contexts of partisan de-institutionalization —the process through which inter-party interactions shift from a routine to unstable over time (Chiaramonte & Emanuele, 2022). The erosion of stable party-voter ties has fostered the rise of self-presented anti-establishment executives with anti-pluralist attitudes (Perelló & Navia, 2022), who exploit democratic satisfaction and anti-party sentiment, presenting themselves as outsiders capable of restoring political order (Luján & Puig-Lombardi, 2026). Under these circumstances, citizens may evaluate political actors by performance and perceived trade-offs rather than partisan alignment. So, executives delivering tangible outcomes may encounter greater public tolerance for democratic transgressions, when citizens are satisfied with their performance.

I assess this argument on El Salvador. Bukele’s exceptionally high approval despite openly anti-pluralist tactics, the partisan de-institutionalization followed the collapse of the consolidated two-party system and the reform’s framing as a response to judicial overreach make El Salvador a compelling case.

Empirically, the study adopts an Unexpected Event During Survey Design (UESD) (Muñoz et al., 2019), leveraging the overlap between the 2021 AmericasBarometer fieldwork and the May 1 reform. This allows a quasi-experimental comparison of individuals interviewed before and after the reform. Using Ordinary Least Squares (OLS) regression, I examine whether exposure to the reform increased tolerance of a rule-bending executive (H_1) and whether this effect varies by (dis) approval of presidential performance.

The analysis provides partly null results. Once controls are added, exposure to the May 1, 2021, reform does not lead to a statistically significant change in tolerance for executive overreach, and the moderating effect of (dis) approval of the president's performance is also statistically insignificant. The bivariate model and the tighter ± 1 -day bandwidth check indicate a short-lived effect in the opposite direction of H_1 that disappears in the other models. Nevertheless, approval of the president's performance emerges as a statistically significant and strong predictor of tolerance, a pattern consistent with what the 2018, 2021 and 2023 AmericasBarometer waves confirm. These findings suggest that the three mechanisms of the theoretical framework had consolidated citizens' attitudes well before the reform, while incumbent's performance-based evaluation emerges as a determinant in contexts of partisan disruption.

This study contributes to the vibrant stream of research on public reactions to court curbing strategies. First, by examining how citizens' relationship with the judiciary shapes their tolerance of executive overreach, this study brings valuable insights into whether public perception of the judiciary as a remote elite and anti-pluralist and populist framing of the judiciary can enable attitudinal shifts among ordinary citizens (Juzgenbayev, 2025), eroding trust in courts and citizens' willingness to defend the institution. Second, it enriches our understanding of seemingly formal reforms by considering how incumbent's justifications and their complex legalistic framing may weaken public response (Driscoll & Nelson, 2023). Moreover, drawing on Sánchez-Sibony's (2024) call for analytical tools to examine "democracies without parties" (p.56), this study incorporates (dis) approval of incumbent performance, grounded in perceived trade-offs, as a key factor explaining citizens' responses to court-curbing and other violations in settings experiencing erosion of party systems.

The structure of the thesis is organized as follows. The next part reviews literature on anti-pluralist political actors, their court-curbing strategies, the deployment of formal institutional reforms to dismantle judicial independence, and citizens' responses to democratic violations, leading to the identified gap. The theoretical framework is then developed, followed by the study's hypothesis. The case of El Salvador is subsequently explained focusing on the country's political trajectory, leading to May 1, 2021, reform. Thereafter, the research design, data and methodology are presented, followed by the study's findings. Finally, the discussion considers the study's results and limitations, before the conclusion brings together its main findings and contributions and suggests ideas for future research.

2. Literature Review

2.1 Anti-pluralist Political Actors

The current democratic decay is commonly driven by executive aggrandizement—when anti-pluralist prime ministers or presidents, using the rules of the democratic game, gradually weaken checks on the executive power by co-opting or undermining key actors such as opposition, judges, journalists, civil society, bureaucrats and independent oversight bodies (Aguiar-Aguilar, 2023; Garcia-Holgado, 2025; Juzgenbayev, 2025; Petrov, 2024). These incumbents have been labeled in overlapping ways—illiberal, authoritarian, would-be autocrats, populists—but this study considers that *anti-pluralism* as the concept captures most precisely their distinctive threat to liberal democracy (Medzihorsky & Lindberg, 2024).

Anti-pluralism is defined by four key features: (i) a lack of commitment to democratic procedures as the legal means for gaining power, (ii) the denial of the legitimacy of opposition parties and dissenters, (iii) tolerance or endorsement of political violence, (iv) indications of curtailing the civil liberties of minority groups (Lewkowicz et al., 2024; Medzihorsky & Lindberg, 2024). These traits stand in contrast to pluralism, which rests on reciprocal tolerance and political competition and institutional guarantees such as the orderly alternation of power (Dahl, 1971; Sartori, 1997).

The relation between anti-pluralism and populism has provoked considerable debate. A substantial body of literature treats the two as closely interconnected (Aguiar-Aguilar, 2023; Haggard & Tiede, 2025; Lewkowicz et al., 2024; Mazzoleni & Voerman, 2020; Nilsson, 2022; Petrov, 2024), converging on three core features of populism: people-centrism, anti-elitism, and an antagonism between the “virtuous people” and the “corrupt elite” (Medzihorsky & Lindberg, 2024, p.2). Considering populism’s appeal to the unmediated general will, these features stand in tension with counter-majoritarian constraints that are core principles of liberal democracy (Juzgenbayev, 2025). However, other studies distinguish inherently anti-democratic behavior from populist narrative (Koos, 2025; Lewkowicz et al., 2024; Medzihorsky & Lindberg, 2024), considering that despite similarities they should not be conflated. This study adopts the former, considering that while anti-pluralism and populism do not always coincide, the populist framing of politics offers an efficient discursive justification for the rejection of non-majoritarian institutions.

Another body of scholarship suggests that contemporary anti-pluralist executives show authoritarian and populist features combined with a personalized style of leadership (Luján & Puig-Lombardi, 2026; Meléndez-Sánchez, 2021; Sánchez-Sibony, 2022). Meléndez-Sánchez (2021) conceptualizes this pattern as *millennial authoritarianism*, involving anti-establishment, anti-party rhetoric, disrespect to democratic institutions and media-driven personal branding.

To conclude, the literature underlines that anti-pluralist actors are defined by the abusive use of political power to dismantle the core mechanisms of democratic principles and accountability. In this regard, the judiciary emerges as a key institutional pillar. Courts hold the formal power to invalidate executive and legislative acts, serving as the last line of defence against executive aggrandizement once other accountability institutions have been already captured (Aguiar-Aguilar, 2020). Therefore, given their role as counter-majoritarian institutions and checks on executive power, courts are among the institutions most frequently targeted by anti-pluralist incumbents. The following section examines how anti-pluralist executives engage in court-curbing strategies to undermine judicial independence and consolidate their authority.

2.2 Anti-Pluralist Political Actors and the Judiciary

Liberal democracies are grounded in the principle of separation of powers, whereby state authority is divided into different branches — the executive, legislative, and judicial — each operating independently to prevent political abuse (Aguiar-Aguilar, 2020, p.4). Because degradation of structures involves neutralization of non-majoritarian oversight institutions (Petrov, 2024) courts are a beloved tool for anti-pluralist incumbents, who seek to capture judicial independence while framing their actions as efforts to restore democracy, bolster economic growth, eradicate corruption and abuses of privileged elites (Aguiar-Aguilar, 2020).

In the literature, these processes are commonly conceptualized as *judicial backsliding* (Haggard & Tiede, 2025) and *court curbing* (Aydın-Çakır, 2024). Judicial backsliding refers to a process whereby elected incumbents in consolidated democracies to some extent curtail judicial independence and undermine the separation of powers (Haggard & Tiede, 2025, p. 515). Court-curbing practices span both formal and informal measures (Aydın-Çakır, 2024; Aydın-Çakır & Akarçay, 2025; Aydın-Çakır & Driscoll, 2025). Informal practices, involve verbal attacks aiming to delegitimize courts, disrespect to the constitution and non-compliance with judicial rulings (Aydın-Çakır

& Driscoll, 2025). Formal practices — the focus of this study — include constitutional reforms brought by public vote, parliamentary proposals cutting budget allocations, undermining jurisdiction, remove judges.

Capturing the judiciary unfolds in three steps: i) threats or attacks against the judiciary ii) purging the judiciary and/or iii) packing the courts with loyal judges (Aguilar-Aguilar, 2020, p.11). The first prepares the public through an anti-elite discourse against the judiciary. For example, the Law and Justice Party (PiS), in Poland, constantly framed the law as subordinate to popular will through what it termed “impossibilism”— the inability of a democratically elected government to fulfill the “nation’s will” due to constitutional constraints (Aguilar-Aguilar, 2020, p.3). Likewise, Mexico’s MORENA portrayed the judiciary as corrupted and privileged, obstructing national progress (Aguilar-Aguilar, 2020). These pressures push non-loyal judges toward resignation and pave the way for the purging and packing — ostensibly executed through institutional reforms. For instance, Bolivia’s Law 003 allowed the dismissal of more than 100 judges and facilitated “abusive judicial review” that lifted the restriction on Morales’s re-election (Gamboa et al., 2024).

Once captured through such reforms, courts may formally maintain their powers of judicial review, but they cease to function as effective checks on the executive authority. Previous research deploys concepts such as *autocratic legalism* (Garcia-Holgado, 2025) and *formal court-curbing* (Aydın-Çakır, 2023, 2024; Aydın-Çakır & Driscoll, 2025) — to describe how anti-pluralist incumbents manipulate institutional reforms to dismantle horizontal constraints and entrench their power while operating seemingly within the framework of legality.

These reforms are primarily aimed at maximizing executive influence over the judiciary by establishing an instrumental relationship with constitutionalism and courts (Castillo-Ortiz, 2019; Mazzoleni & Voerman, 2020), curtailing judicial independence and rendering courts largely inefficient (Aydın-Çakır, 2024; Castillo-Ortiz, 2019; Garcia-Holgado & Urribarri-Sanchez, 2024).

Formal court-curbing reforms encompass several dimensions. Constitutional amendments and new constitutions can severely restrict courts’ competencies, particularly their authority to conduct judicial review, by narrowing the scope of judicial oversight, imposing procedural obstacles, or diminishing the constitutional standards against which government practices are evaluated (Aydın-Çakır & Driscoll, 2025; Petrov, 2024). Institutional reforms include legislative measures focused

on reorganizing higher courts, budget cuts, and changes in judges' salaries, tenures, and appointment frameworks (Aydın-Çakır & Akarçay, 2025; Haggard & Tiede, 2025; Petrov, 2022).

Various cases confirm this pattern. In Turkey, following the failed coup attempt in 2016, the Turkish government declared a state of emergency and used it to purge more than a quarter of the judiciary (Garoupa & Spruk, 2024). In Hungary, Viktor Orbán and Fidesz, through the amendment of Article 32 of the 1949 Constitution weakened importantly the Constitutional Court's authority. Soon after the amendment, legislation was passed lowering the retirement age of judges from 70 to 62. This led to a decline of around 10% of judges, creating an opportunity to appoint judges politically loyal to the party (Ordanoski & Angiolillo, 2024). After the 2010 constitutional amendments, in 2012, a new constitution was adopted in Hungary which included reforms increasing the number of constitutional court judges from 11 to 15 judges (Aydın-Çakır, 2024). As Fidesz government appointed the four additional judges, the measure is widely characterized as court-packing (Aydın-Çakır, 2024, p.1188). In Poland, the Law and Justice Party (PiS) government changed the Constitutional Tribunal's internal decision-making rules by increasing the necessary number of judges for rulings and voting thresholds and imposing procedural constraints. That obstructed effectively the court's capacity to annul PiS-backed legislation (Aydın-Çakır, 2024, p.1189-1190). In North Macedonia, under the tenure of the Prime Minister Nikola Gruevski, the decline of horizontal constraints involved, among others things, executive budget manipulation (Haggard & Tiede, 2025, p.530). El Salvador's May 1, 2021, reform, aligns with this pattern — the legislative dismissal and replacement of all five judges of the Constitutional Chamber, executed through a parliamentary decision framed as legally valid.

A common ground between these cases is not merely the weakening of judicial independence but its execution through seemingly lawful channels, transforming courts into tools of political legitimization. However, the implications of these reforms depend on citizens' perceptions and their ability to identify democratic violations —a question that brings us to the core of this study. The following section discusses how the public responds to democratic transgressions.

2.3 Public Reactions to Court-Curbing

Public reactions to formal court-curbing are central to the survival of judicial independence and democracy more broadly. Once the judiciary is captured, citizens represent the last bulwark against undemocratic actions by elected politicians (Wunsch et al., 2025). In various democratic and hybrid regimes, anti-pluralist incumbents have curbed courts without facing public sanction (Aydın-Çakır & Driscoll, 2025; Driscoll & Nelson, 2023). Conversely, another part of research argues that court's legitimacy leads to sanctioning court-curbing, under certain conditions. This study draws on the main explanatory frameworks for citizens' reactions to court-curbing, each providing important insights while also revealing valuable limitations.

A significant body of the literature conceptualizes the relationship between courts and the public through the notion of legitimacy (Gibson & Caldeira, 2009). The judiciary enjoys what Caldeira & Gibson (1992) call a *reservoir of goodwill* — a diffuse support by the public that protects courts from public backlash in adverse rulings and political attacks, and that, in turn, deters incumbents from undermining the judiciary out of fear for electoral repercussions (Driscoll & Nelson, 2023). Concerning sanctioning court-curbing, Driscoll & Nelson (2023) find that citizens may punish through *countermobilization*, where voters withdraw their electoral support from the incumbent while start backing the opponent, and *indirect countermobilization*, where withholding support leads to electoral disengaging, meaning that the disagreement with the incumbent's stance on a court reform does not translate into active opposition. Beyond elections, punishment can also take other short-term, immediate forms such as protests and petitions (Driscoll & Nelson, 2023, p.4).

Challenging the judicial legitimacy theory, another body of literature considers partisanship as the central mechanism shaping citizens' responses. Based on *partisan motivated reasoning* (Leeper & Slothuus, 2014) and *partisan alignment theory* (Bartels & Kramon, 2020), individuals accept or reject information, in ways that justify their party's positions (Petersen et al., 2013) and evaluate democratic institutions by whether these constrain or benefit co-partisan incumbents (Bartels & Kramon, 2020). A substantial body of literature (Graham & Svolik, 2020; Mazepus, 2025; Svolik, 2020) illustrates that citizens trade-off democratic principles for ideology, partisan loyalty, or policy preferences, assessing checks and balances instrumentally rather than normatively (Bartels & Kramon, 2020). This tendency is conceptualized as *partisan double standards* (Aarslew, 2023; Graham & Svolik, 2020; Mazepus & Toshkov, 2022) or *democratic hypocrisy* (Simonovits et al.,

2022). Co-partisans rarely punish incumbents who undermine horizontal constraints, adjusting their trust in the judiciary accordingly (Bartels & Kramon, 2020; Driscoll & Nelson, 2023; Gandur, 2025; Magalhães & Garoupa, 2024). Driscoll et al. (2024) find that citizens, supporters of the incumbent are willing to accept executive noncompliance with Supreme Court rulings when they impede the governmental agenda.

Another explanation for sanctioning or not court-curbing actions foregrounds citizens' *understandings of democracy* (Kaftan, 2024; Kaftan & Gessler, 2025; Wunsch et al., 2025). While most citizens express support for democracy, a significant share holds understandings that diverge from liberal democratic principles (Chapman et al., 2024; Wunsch et al., 2025). Wunsch et al. (2025) distinguish three understandings — liberal, majoritarian, and authoritarian — emphasizing pluralism and executive constraints, majority rule, and maintenance of social order, respectively. Citizens with majoritarian or authoritarian understandings are structurally more tolerant of violations against institutions such as the judiciary, as these constraints are less salient to them (Jacob, 2025a; Kaftan & Gessler, 2025; Wunsch et al., 2025). A related distinction concerns how citizens weight electoral versus liberal components of democracy. Those equating democracy primarily with elections may place less emphasis on liberal constraints such as judicial independence (Kaftan, 2024), lowering the salience of court-curbing reforms.

Other studies emphasize the role of *political awareness and education* (Aydın-Çakır & Şekercioğlu, 2016; Chapman et al., 2024; Gandur et al., 2025; Magalhães & Garoupa, 2024), stating that better-informed individuals indicate higher institutional commitment to judicial independence, are more capable of recognizing court-curbing and more likely to sanction rule-bending incumbents.

Finally, a recent line of work draws on *epistemic vigilance* — the cognitive mechanisms through which individuals assess the credibility of political actions and intentions to avoid deception (Mercier, 2017; Sperber et al., 2010). These mechanisms are dispositional rather than constant. People possess them, but they are activated in response to certain stimuli (Sperber et al., 2010) — such as high-stakes issues (Mazepus, 2025). Vigilance leads citizens to scrutinize the intentions of actors proposing institutional reforms, asking whether the reform's alleged purpose is benign and whether the actor serves their interests (Mazepus, 2025, p.2).

These frameworks share a common blind spot. While they explain the reasons behind sanctioning or failing to sanction formal court-curbing, they leave understudied whether there are factors

making citizens feel disconnected from the judiciary, and whether such detachment increases their tolerance of formal court-curbing and executive overreach in general. The next section elaborates on the gap that this study addresses.

3. Gap in the Literature

While existing literature extensively explains citizens' predispositions to sanction or tolerate democratic violations and formal court-curbing, less attention has been paid to the combination of factors that may disconnect citizens from the judiciary and consequently render them more tolerant of executive aggrandizement. From this study's perspective, scholarship has not sufficiently studied how public perceptions of the judiciary, anti-pluralist and populist rhetoric and the specific design of formal court-curbing reforms interact to obscure the democratic implications of dismantling judicial independence.

First, the public perception of the judiciary as a distant elite can weaken trust in the institution and erode judicial independence. Ordinary citizens or the "precariat" may perceive issues such as the rule of law and separation of powers as irrelevant concerns from their everyday struggles (Kosař, 2025). This perception is further reinforced by structural barriers to accessing justice, including lack of social capital, time and resources. So, courts may be viewed not as guardians of citizens' rights but as institutions serving the interests of the privileged few.

Such detachment can increase public susceptibility to anti-pluralist and populist narratives that portray the judiciary as a corrupt, elitist institution obstructing the popular will. Informal attacks against courts in public discourse delegitimize gradually the image of the judiciary and erode public confidence in its constitutional role.

In this context, formal court-curbing reforms are often justified as necessary measure to enhance accountability and efficiency and anti-corruption efforts. Considering that these reforms are characterized by procedural complexity and technical language, citizens may fail to recognize them as a component of a broader executive overreach.

To address this gap, this study examines whether being exposed to a formal reform weakening the judiciary increases citizens' tolerance of executive overreach. Specifically, it examines whether

citizens' detachment from courts and exposure to anti-pluralist and populist narratives combined with the legal framing and legitimizing justifications embedded in such reforms weaken public reaction to executive aggrandizement. The following section explores these claims.

4. Theoretical Framework

This study considers that citizens' evaluations of formal court-curbing are shaped primarily by how the stakes of seemingly formal institutional reforms are perceived.

This thesis contrasts with previous literature on judicial legitimacy (Gibson & Caldeira, 2009), epistemic vigilance (Mazepus, 2025), and the role of education and political awareness (Aydin-Çakır & Şekercioğlu, 2016). Although these approaches rely on different mechanisms — diffuse institutional support, the activation of epistemic vigilance, and informed political judgment respectively — they lead to the same expectation: court-curbing reforms targeting courts mobilize reactions in defence of the judiciary. I propose a different expectation. I consider that the public may fail to perceive formal court-curbing reforms as democratic transgressions when three distinct factors intersect: the perception of the judiciary as a disconnected institution from ordinary citizens, the anti-pluralist and populist discourse against courts, and legalistic design and legitimizing justifications of formal court-curbing reforms. Each of these factors may shape public's attitudes on its own; their joint co-existence, however, strongly obscures the stakes of judicial erosion.

Rather than unfold as separate mechanisms, these dynamics interact and foster one another in shaping public perceptions of the judiciary and court-curbing practices including reforms. Together, they can blur the democratic implications of executive overreach and deter public reaction to sanction authoritarian-leaning behavior.

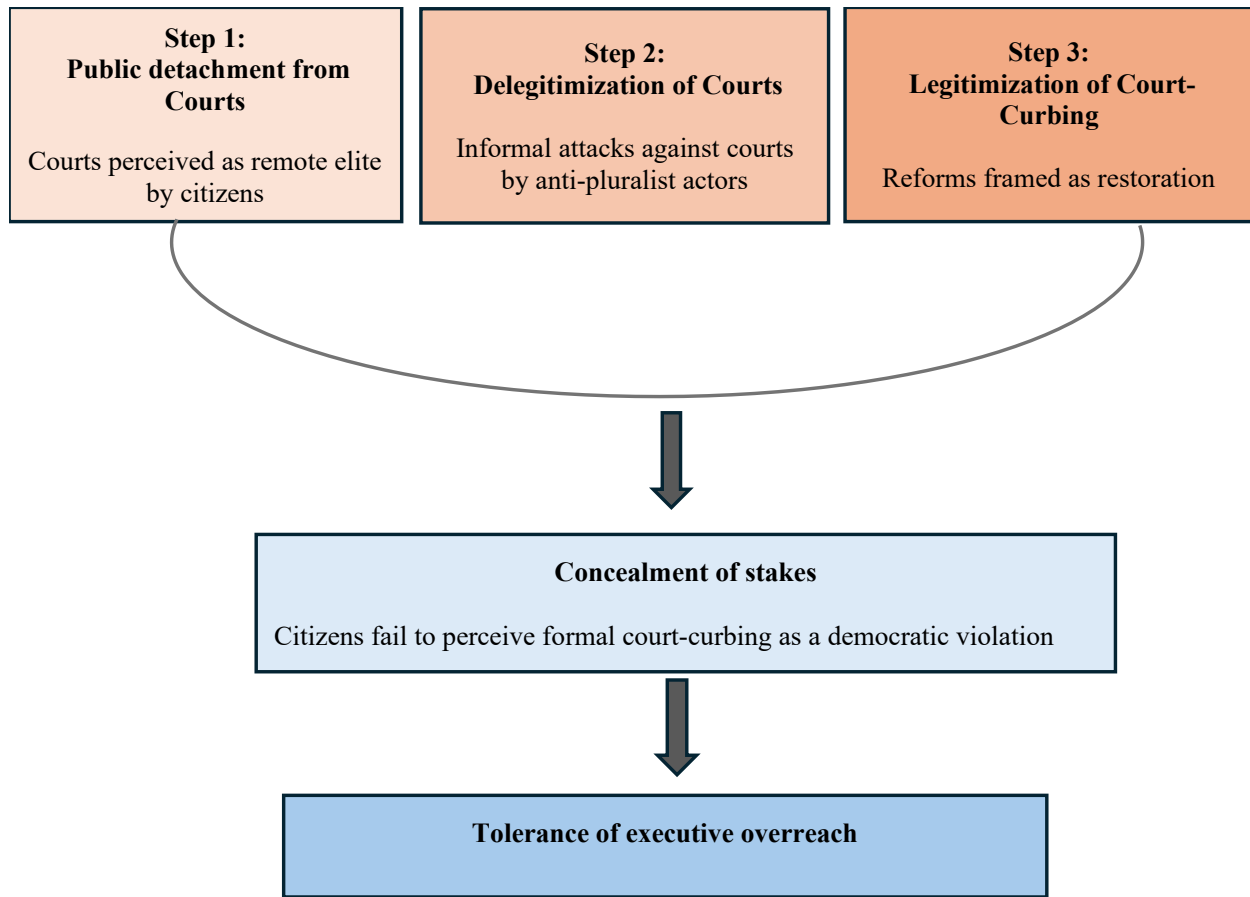


Figure 1. Concealing the stakes of formal court-curbing: A three-step process.

4.1 Concealing the Stakes of Formal Court-Curbing Reforms: A Three-Step Process

As shown in Figure 1, three mechanisms blur the actual stakes of formal court-curbing for citizens: first, the pre-existing perception of the judiciary as an institution disconnected from citizens; second, anti-pluralist and populist delegitimization of courts that capitalizes on it, and third, the deployment of seemingly formal legalistic technical language and procedural complexity in formal court-curbing reforms.

Step 1: Public Detachment from the Judiciary

The starting point is the image that the judiciary occupies in peoples' perception, well before the election of an anti-pluralist incumbent and the implementation of any institutional reform. This study considers that courts are often perceived as institutions belonging to a remote elite, both in terms of composition and accessing them. In the minds of many ordinary citizens, courts may appear as institutions primarily concerned with interpreting abstract issues of law through technical language largely inaccessible to non-lawyers, while protecting the interests of their social class and adjudicating on issues that are distant from the daily concerns of ordinary citizens (Kosař, 2025).

The judiciary may also be viewed as a rigid and bureaucratic institution whose mechanisms are absent or heavily restricted for ordinary people. Procedural complexities, high legal costs, lengthy judicial delays, conservative institutional culture, controversial rulings and weak engagement with the public may further reinforce citizens' perception that courts protect the interests of the few, despite ostensibly serving as protectors of citizens' rights. This institutional inaccessibility means that citizens engage with the judiciary and court-curbing events, if at all, only through media which considering the age of disinformation that we live in, can facilitate the consolidation of certain narratives against the judiciary by political actors (Kosař, 2025).

Step 2: Delegitimization of Courts

Enabled by these pre-existing perceptions of the judiciary, anti-pluralist executives engage in strategies of gradual delegitimization of the institution (Ordanoski & Angiolillo, 2024). As discussed in previous sections, anti-pluralist actors portray courts as bureaucratic, corrupt, politicized and disconnected from the "real people", reinforcing an image of the judiciary as an obstacle to the national progress and popular will.

I consider that these practices of delegitimization achieve their goal, at least in part. By leveraging existing distrust and frustration, anti-pluralist and populist rhetoric distort the image of the judiciary and consolidates a perception of courts as parts of the very establishment that the anti-pluralist and populist executive claims to fight against.

Importantly, these actions shape how subsequent formal reforms against courts will be perceived by the public. Once the judiciary is framed as politically biased, corrupt and inefficient, reforms may be perceived as justified or even necessary.

Step 3: Legitimization of Court-Curbing

The third mechanism concerns the design and framing of formal court-curbing reforms themselves. Following Ordanoski & Angiolillo's (2024) account of legitimization rhetoric and legal engineering as incumbent strategies during autocratization, anti-pluralist executives rely on ostensibly formal means such as constitutional amendments, courts' restructuring and deployment of parliamentary majorities to dismantle judicial independence while maintaining a façade of legality.

Continuing the narrative built up in the previous step, these reforms are justified as necessary by claiming that the judiciary is inefficient, politicized, or in need of restructuring, or by speaking in the name of the public interest. Governments may also minimize the perceived negative impact of the reforms by passing controversial reforms with broad omnibus bills, thereby creating trade-offs that citizens may accept, allowing contentious provisions to pass without triggering substantial public reaction (Aydın-Çakır & Driscoll, 2025).

This study argues that the broad institutional consensus, justifications, technical language and formal procedures surrounding these reforms make it harder for the public to discern the executive's true intentions. As a result, such measure may be perceived as legitimate rather than as attempts to curb the courts (Aydın-Çakır & Driscoll, 2025). On this basis, citizens may become more susceptible to accepting such justifications, perceiving such actions as a restoration of a dysfunctional institution.

Building on these mechanisms, I argue that citizens may misperceive, underestimate or have no interest in the stakes of institutional reforms dismantling judicial independence —rendering them more tolerant of autocratization. This leads to my hypothesis:

H₁: Exposure to an institutional reform weakening the judiciary is associated with higher tolerance of rule-bending by the executive.

This argument may be particularly relevant, though not exclusively applicable, in contexts of partisan de-institutionalization, where the erosion of traditional party-voter ties creates opportunities for new or fringe parties and candidates to challenge the status quo (Perelló & Navia, 2022). In such environments, anti-establishment actors invest in personalistic appeals, ideological dilution and anti-party system rhetoric to mobilize support and diminish party attachments (Sánchez-Sibony, 2022). Citizens experiencing ideological exhaustion, dissatisfaction with democracy and skepticism toward parties (Luján & Puig-Lombardi, 2026) may therefore evaluate political actors through other lenses, such as personalistic appeals and perceived trade-offs.

In these settings, this study argues that citizens evaluate political actors primarily through performance-based assessment rather than stable partisan alignment. As a result, when citizens evaluate the executive uncritically and rely predominantly on the delivery of tangible results as their sole criterion of evaluation, they may become more tolerant of court-curbing and executive aggrandizement more broadly. Approval of the executive performance may therefore condition how citizens perceive institutional reforms, increasing their tolerance of executive overreach when such tactics are accompanied by tangible trade-offs.

It is also important to explain why approval-based evaluation, although sometimes conflates with partisan alignment, remains conceptually distinct from it. Partisanship is rooted in identity-based attachment to a party or ideological orientation and remains relatively stable even when performance deteriorates (Huddy et al., 2018). Conversely, approval is grounded in a continuous evaluation of the executive's performance, shaped by citizens' perceived trade-offs related to the results delivered (Healy & Malhotra, 2013). Although those two may converge in institutionalized party systems, since citizens evaluate incumbents through partisan attachment, this relationship erodes under party de-institutionalization. In such contexts, citizens may support political actors whose party was unknown in the past or reject partisan identification as is often the case with many populist actors and entities.

The following section introduces El Salvador and the May 1, 2021, dismissal of the Constitutional Chamber judges as a particularly relevant empirical setting for testing public reactions to court-curbing reforms in a context of exceptionally high presidential approval and perceived trade-offs in public security.

5. El Salvador Case

Most studies on citizens' response to court-curbing in democratic backsliding have focused primarily on European countries — Poland (Mazepus, 2025; Wunsch et al., 2025) and Hungary (Aydın-Çakır, 2024; Gessler & Wunsch, 2025; Wunsch & Gessler, 2023), Turkey (Aydın-Çakır, 2023; Aydın-Çakır & Driscoll, 2025; Garoupa & Spruk, 2024), the United States (Driscoll et al., 2024; Graham & Svolik, 2020) — with a smaller body of work on cases in Latin and Central America (Gamboa et al., 2024; Garcia-Holgado & Urribarri-Sanchez, 2024). El Salvador combines three features that make it a compelling case to examine the study's research question: post-conflict democratization, a collapsed party system, and an anti-establishment executive whose openly anti-pluralist practices coexist with exceptionally high public support (Martinez, 2024). This combination allows examining tolerance of executive overreach through performance-based evaluations and perceived trade-offs — reduction in gang violence, crackdown on corruption — rather than through conventional partisan alignment.

This case selection generates important insights. The findings are transferable to any context in which a popular outsider capitalizes on public dissatisfaction with the democracy (Meléndez-Sánchez, 2021; Perelló & Navia, 2022) and rises in the ruins of a disrupted party system — a dynamic increasingly common in Latin America (Sánchez-Sibony, 2022). El Salvador thus offers a test on whether (dis) approval of performance-based evaluation can replace the partisan explanation when citizens assess democratic transgressions. Moreover, this case is a site of millennial authoritarianism (Meléndez-Sánchez, 2021), in which traditional authoritarian practices are blended with populist anti-elite narrative and social-media-driven popularity, grounded in anti-corruption and security performance.

The roots of the current situation lie in the civil war (1979-1992) and its aftermath (Nilsson, 2022). The left-wing guerilla group, the Farabundo Martí National Liberation Front (FMLN), fought against a US-backed government, supported by the Alianza Republicana Nacionalista (ARENA) and the Christian Democratic Party (PDC), with the conflict shaped by the broader Cold War context. The 1992 peace agreement led to El Salvador's first free and fair elections in 1994 and produced what was once considered one of the region's strongest two-party systems (Gamboa, 2023), with ARENA and FMLN alternating in power until 2019 (Nilsson, 2022). The same agreement, however, produced a stagnant and exclusionary political system that empowered entrenched elites,

marginalized smaller parties and was unresponsive to citizens' needs (Gamboa, 2023; Meléndez-Sánchez, 2021; Merino-Menjivar, 2024). Both major parties failed to address insecurity, corruption and inequality, leading to growing public disenchantment with democracy (Gamboa et al., 2024; Gedan & French, 2025; Meléndez-Sánchez, 2021; Merino-Menjivar, 2024; Nilsson, 2022; Perelló & Navia, 2022). Support for democracy fell from 80 percent in 1998, five years after the transition, to just 30 percent by 2018 (Gamboa, 2023), while 62.4 percent argued that elections are a waste of time (Meléndez-Sánchez, 2021).

Amid this widespread dissatisfaction (Meléndez-Sánchez, 2021), Bukele capitalized on these circumstances by running as an outsider against the traditional parties (Luján & Puig-Lombardi, 2026) and won the 2018 election, despite his authoritarian tendencies as FMLN mayor of San Salvador. Ultimately, many Salvadorans were willing to gamble democracy in the hope of meaningful change (Gamboa, 2023). Bukele entered office with approval ratings above 86 percent and utilized his overwhelming public support to consolidate his power and legitimize the dismantling of the checks and balances (Martinez, 2024; Meléndez-Sánchez, 2021). From his first year, he framed the judiciary and legislature as obstacles to delivering economic progress and security (Aguiar-Aguilar, 2023, p.19). This discourse was further intensified during the COVID-19 pandemic (Gamboa, 2023; Hernández, 2025; Nilsson, 2022), when the Constitutional Chamber declared eleven of his decrees unconstitutional. Bukele refused to comply and publicly attacked the Chamber judges (Hernández, 2025). In February 2020, Bukele escalated tensions by taking the military to Congress Hall to force Congress representatives to approve his anti-crime bill (Aguiar-Aguilar, 2023; Llanos & Tibi-Weber, 2023). The decisive shift came in February 2021, when *Nuevas Ideas* secured 56 of 84 legislative seats — an unprecedented supermajority that effectively eliminated Congress as a check on the executive (Aguiar-Aguilar, 2023; Gamboa, 2023; Meléndez-Sánchez, 2021).

On May 1, 2021, the day the new legislature was inaugurated, the lawmakers removed all five Constitutional Chamber judges (Aguiar-Aguilar, 2023; Gamboa, 2023; Meléndez-Sánchez, 2021). The decision was justified on the grounds of alleged public dissatisfaction with the judges' "anti-popular decisions", and accused them of overstepping their authority by overreaching powers that are under the executive branch, particularly in issues of public health (Llanos & Tibi-Weber, 2023, p.140). There are strong reasons to view the removal of the Constitutional Chamber judges as an

authoritarian measure, as the Legislative Decree No.2 was adopted without due process and was based solely on political criticisms regarding the pandemic measures. The absence of legally defined disciplinary grounds for dismissal highlights how legal means are utilized to legitimize authoritarian actions within hybrid regimes (Hernández, 2025; Merino-Menjivar, 2024).

Afterwards, Bukele's majority appointed five new loyal judges, despite the legal requirement that candidates must be preselected by the Judicial Council (Llanos & Tibi-Weber, 2023). Subsequent reforms in August 2021 dismissed all judges over 60 years old and replaced them with loyalists willing to abolish the constitutionally prohibited presidential limits (Martinez, 2024). Shortly thereafter, the Legislative Assembly approved a state of emergency at president's request, citing gang activity (Martinez, 2024, p.169). In October 2022, the Bukele administration claimed that the presidential term limits violate sovereignty and fundamental rights, and the Assembly criminalized any obstruction of a candidate's registration (Gedan & French, 2025).

These practices paved the way for Bukele's re-election in 2024 with 85 percent of the vote (Gedan & French, 2025; Wolf, 2021). The May 1, 2021, reform marked a pivotal moment in nullifying the separation of powers, and decisions by the new Constitutional Court have since been used to further erode democracy (Aguilar-Aguilar, 2023). Yet over 70 percent of Salvadorans were in favor of Bukele's dismissal of the Constitutional Chamber judges and the attorney general (Meléndez-Sánchez, 2021, p.19).

The Salvadoran public's tolerance of Bukele's formal attacks on the judiciary suggests that these actions were not perceived as a blow to democracy, raising questions about citizens' commitment to democratic values.

6. Research Design, Data and Method

6.1 Unexpected Event During Survey Design (UESD)

This study employs UESD to examine the effects of the institutional reform of May 1, 2021, which aimed to weaken judicial independence in El Salvador, on citizens' tolerance for autocratization. While similar methodologies have been deployed to identify the effects of terrorist attacks on social trust (Geys & Qari, 2017; Nägel & Nivette, 2023) or on party preferences (Vlandas & Halikiopoulou, 2025), studies that examine the effects of anti-pluralist informal attacks and formal reforms—both broadly and specifically within the judiciary—on public attitudes primarily deploy survey experiments (Aydın-Çakır & Driscoll, 2025; Peffley & Rohrschneider, 2024; Simonovits et al., 2022) or conjoint experiments (Saikkonen & Christensen, 2023; Wunsch et al., 2025; Wunsch & Gessler, 2023) and quasi-experiment comparison with methods such as synthetic controls (Aydın-Çakır, 2024).

In contrast, this study through adopting UESD aims to leverage the variation in timing of AmericasBarometer survey fieldwork, in El Salvador, during 2021 to identify the causal effects of the May 1 reform on citizen's tolerance for autocratization.

The UESD relies on the occurrence of an exogenous, unexpected event during survey fieldwork to estimate its causal effect on an outcome by comparing respondents interviewed prior to the event (control group, $t_i < t_e$) with those interviewed afterward (treatment group, $t_i > t_e$) (Muñoz et al., 2019, p. 3). This identification strategy depends on the assumption that, because the event is unexpected, the interview timing for each respondent is independent from the occurrence of the event, resulting in as-if random assignment to the treatment, the unexpected event (Keele, 2015; Muñoz et al., 2019). The reform targeted at weakening the judiciary was issued on May 1, 2021, during the ongoing fieldwork of the 2021 wave for AmericasBarometer in El Salvador. As interviewers or respondents were not aware of the precise timing and decision's content, respondents interviewed before the ruling were not treated, as they were not exposed to the decision, whereas respondents interviewed after the ruling were treated, as they were exposed to the decision.

Tensions between the Bukele administration and the judiciary had been escalating long before May 1, 2021 (Hernández, 2025; Meléndez-Sánchez, 2021; Nilsson, 2022) and the landslide victory in the legislative elections in February 2021 may have led some observers to anticipate institutional

reform, however, the precise timing and immediate implementation of the reforms were not foreseen. The reform was implemented rapidly upon the inauguration of the new legislature, leading to the swift dismissal of judges opposed to Bukele's agenda. Thus, while institutional conflict may have been predicted, neither respondents nor interviewers could reasonably anticipate the exact timing or content of the reform during survey fieldwork. Consequently, being exposed to the reform is relied on interview timing, supporting the assumption that assignment to treatment approximates as-if random.

Although UESD can be a valuable approach for evaluating the impact of high-profile incidents on public opinion, it requires several important methodological conditions, that must be met to reliably estimate causal effect (Nägel & Nivette, 2023). This identification strategy relies on two important assumptions: the excludability and ignorability assumptions (Keele, 2015; Muñoz et al., 2019; Nägel & Nivette, 2023). The former implies that the timing as an instrument for the focal event's effect on the outcome, influences the outcome solely through the exposure to the event and not through other channels (Nägel & Nivette, 2023). Consequently, the timing of the interview affects tolerance in autocratization only through exposure to the institutional reform of May 1, 2021, and not through other collateral events, unrelated time trends, or confounding factors (Muñoz et al., 2019; Nägel & Nivette, 2023). The latter addresses whether this quasi-experimental setting can be treated as equivalent to a true experiment — particularly, whether treatment assignment occurs in an as-if random manner (Keele, 2015; Muñoz et al., 2019; Nägel & Nivette, 2023). This suggests that respondents interviewed before and after the institutional reform of May 1, 2021, would have had the same levels of tolerance for autocratization in the absence of the reforms.

The increasing use of UESD stems from its capacity to provide credible estimates of the causal effects of unexpected events on theoretically relevant outcomes (Muñoz et al., 2019, p.4). The strength of UESD rests on three main features. First, the quasi-random assignment to treatment and control groups, unlike observational survey designs, fosters internal validity through reducing bias from confounding factors and reverse causality (Muñoz et al., 2019). Second, because UESD relies on naturally occurring events rather than interventions manipulated by a researcher, it enhances external validity compared to a controlled experiment (Muñoz et al., 2019). Third, UESD, in contrast to studies relying on longitudinal data, focuses on a single survey conducted within a narrow time window, thereby minimizing the impact of other macro-level confounders (Muñoz et al., 2019).

However, given the limitations of UESD, it is essential to consider potential confounding factors, such as media coverage, concurrent events, and unrelated time trends, which may violate the excludability assumption (Muñoz et al., 2019; Nägel & Nivette, 2023). Besides that, concerning external validity, drawing on previous findings, these results may not generalize to other cases of public reactions to reforms aimed at transgressing democratic principles (Aydın-Çakır, 2024; Aydın-Çakır & Driscoll, 2025; Wunsch et al., 2025). Moreover, the absence of true randomization and limited researcher control introduces identification challenges that must be explicitly addressed to substantiate credible causal claims (Muñoz et al., 2019).

6.2 Data and Variables

This study uses cross-sectional data from the AmericasBarometer. The AmericasBarometer is a large-scale public opinion survey, conducted by the Latin American Public Opinion Project (LAPOP), at Vanderbilt University. The AmericasBarometer has been examining trends in public opinion since 2004, collecting high-quality and comparative data primarily on attitudes toward democracy and governance across the Americas. The survey involves nationally representative samples of voting-age populations in countries across North, South, Central America and the Caribbean. Each survey wave features a common core questionnaire alongside country-specific modules, enabling systematic comparisons across countries and over time on key issues such as corruption, institutional trust, political legitimacy, state performance, civic engagement, citizen security, migration etc (LAPOP, 2026).

This analysis relies on the 9th round of the 2021 AmericasBarometer, limited to El Salvador. In 2020 and through 2021, for surveys conducted in Latin America and the Caribbean (LAC), LAPOP Lab transitioned from its conventional Face-to-Face household survey mode to Computer-assisted Telephone Interviewing (CATI), to minimize the risks related to the COVID-19 pandemic (LAPOP Lab, 2021). In El Salvador, the survey was conducted between April 21st and June 4th, 2021, resulting in a total of 3,238 observations — 1,940 interviewed before and 1,298 after the May 1, 2021, institutional reform. However, I restrict the sample to interviews conducted within ± 5 -days around the May 1, 2021, to isolate the short-term response and restrict the influence of collateral events. This timeframe provides a more balanced distribution of the interviews for both groups, avoiding potential bias between the groups due to sample-size imbalances. As Figure 2

illustrates, 1,134 interviews were conducted in the five days before the reform and 1,181 in the five days after, before excluding the missing values.

As shown in Table 1, per-variable Ns vary with maximum number of 1,130 pre-reform and 1,179 post-reform respondents. In the regression models, the number of observations is further reduced due to missing values, resulting in 2,242 observations in Model 1 and 2,124 in Model 2. Models 3 and 4, which include the approval of presidential performance as interaction with the reform, the sample is reduced to 1,037 observations. Across all models, the sample is very slightly unbalanced, with a relatively larger share of respondents interviewed after the institutional reform of May 1, 2021, than before.

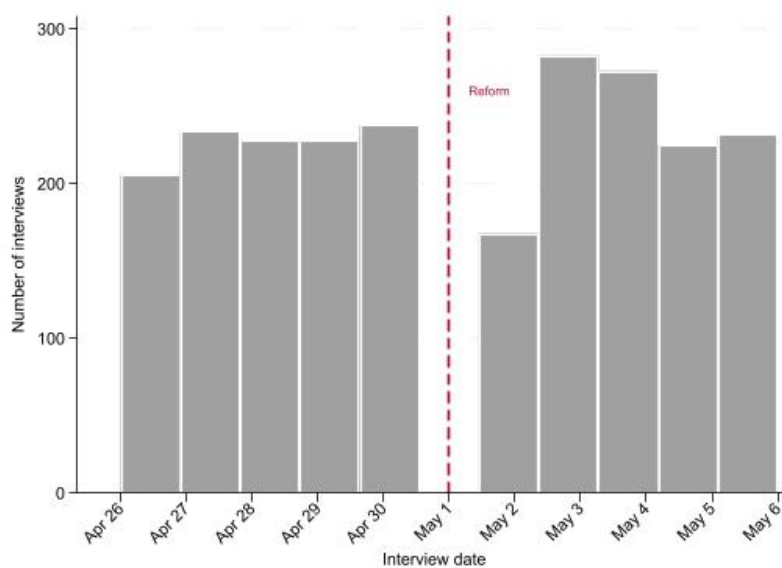


Figure 2: Distribution of AmericasBarometer interviews around the May 1, 2021, reform (± 5 -day window), in El Salvador. LAPOP Lab. (2021). *AmericasBarometer El Salvador, 2021* (Version 1.0) [El_Salvador_2021]. Center for Global Democracy, Vanderbilt University. <https://www.vanderbilt.edu/lapop>

6.3 Independent variable: Exposure to the May 1, 2021, reform

The treatment is defined as exposure to the institutional reform weakening the judiciary in El Salvador issued on May 1, 2021. First, I used the interview date (fecha) in the dataset, which is already in the form year, month, day. Afterwards, I created a binary variable named `Institutional_Reform`. Respondents interviewed before May 1, 2021, were coded as pre-Reform (0) and respondents interviewed after May 1 were coded as post-Reform (1). Aligned with UESD, respondents are assigned to control (pre-event) and treatment (post-event) groups.

6.4 Dependent variable: Support for a rule-bending executive

The outcome variable in this study is citizens' support for a rule-bending executive, measured by the AmericasBarometer item CSES6N. Particularly, respondents were asked whether "having a strong leader in the government, even if the leader bends the rules to get things done" is perceived as a good or bad form of government. Responses were recorded on a five-point ordinal scale with values ranging from "very good" (1) to "very bad" (5). For facilitating interpretation, the variable is reverse coded so that higher values indicate higher support for rule-bending strong leadership. I recoded CSES6N into a `support_strong_leader` with 3 categories where 1 = Oppose strong leader, 2 = Neutral, 3 = Support strong leader. So, positive coefficients are explained as increases in the levels of support for a rule-bending executive.

6.5 Control variables

To mitigate the influence of confounding factors, a set of demographic and attitudinal control variables are added. By controlling for respondents' age, education, gender, and support for democracy, I intend to isolate the effect of exposure to the May 1, 2021, institutional reform on citizens' support for rule-bending strong leadership, thereby reducing the risk of spurious relationships or selection bias (Angrist & Pischke, 2015, p.12)

Age (Q2) is operationalized as a continuous variable in years. Following previous findings suggesting mixed findings concerning the direction of this relationship, this study considers that age is an important predictor of political attitudes (Meléndez-Sánchez, 2021; Perelló & Navia, 2022; Wunsch et al., 2025).

Education (EDR) is operationalized as an ordinal variable with 4 categories ranging from (0) none to (3) tertiary or university or higher (incomplete or complete). In line with previous literature (Aydın-Çakır & Şekercioğlu, 2016; Gandur et al., 2025; Magalhães & Garoupa, 2024) that controls for education, I regard that education is importantly associated with political attitudes and awareness.

Gender (Q1TB) is measured as a categorical variable with 3 categories: (1) male, (2) female and (3) other. However, due to the small number of observations in category (3) “other”, it is recoded into a dummy variable, where 0 equals male and 1 equals female. Previous studies have consistently identified a “gender gap” in supporting anti-pluralist parties (Jansesberger & Rhein, 2024). Combined with that, for El Salvador, particularly, it is important to consider that the state of emergency imposed by Bukele’s administration has impacted according to existing literature men and women differently (Zulver & Méndez, 2023).

Support for democracy (ING4) is measured by using a seven-point Likert scale showing agreement with the statement: “democracy may have problems, but it is better than any other form of government.” This variable is ordinal with values ranging from (1) strongly disagree to (7) strongly agree. I recoded ING4 into democracy support with 3 categories: (0) low support, (1) moderate support and, (2) high support. Therefore, higher values indicate stronger commitment to democratic principles. In alignment with previous literature, support for democracy is approached as an important predictor of political attitudes and understanding constraints (Jacob, 2025b; Kaftan & Gessler, 2025; Wunsch et al., 2025).

Residence (UR1NEW) is operationalized as a categorical variable with 4 categories: (1) a city, (2) on the outskirts or surroundings of a city/suburbs, (3) in a town near a rural area / zone, (4) in a rural area / a rural zone. For facilitating interpretation, this study recodes the variable into a dummy, where respondents residing in a city or suburban area are coded as 1 (urban), and those living in a town or rural areas are coded as 0 (rural). Following previous literature on urban/rural divide (García del Horno et al., 2024), I consider that the place of residence may shape political attitudes and tolerance of executive overreach.

6.6 Heterogeneous effects by approval of president's performance

To examine whether the effect of the institutional reform weakening the judiciary on the tolerance of a rule-bending executive varies across respondents who evaluate the incumbent's performance positively and negatively, I study heterogeneous effects by approval of incumbent's performance. Approval of incumbent's performance (M1) is operationalized by asking respondents: "speaking in general of the current administration, how would you rate the job performance of President". This variable is ordinal with values ranging from (1) very good to (5) very bad. For facilitating interpretation, I recoded M1 into presidential approval (pres_approval) with 3 categories: (0) disapprove, (1) neutral and (2) approve.

7. Results

7.1 Balance Check

To evaluate the validity of the empirical strategy, I examine balance in demographic and political features across respondents interviewed before and after the May 1, 2021, institutional reform. As shown in Table 1, the mean of support for a rule-bending executive is almost identical across the two groups with the group before the May 1, 2021, institutional reform reporting an average of 2.40 and the group after the reform reporting an average of 2.32. Concerning age, the mean is also almost identical across the two groups (39.2 versus 38.1). Likewise, the mean of education (1.84 versus 1.99), residence (0.45 versus 0.46), gender (0.53 versus 0.52) and democratic support (1.36 versus 1.38) are similar or nearly similar. Taken together, the two groups are largely comparable. These findings support the assumption that the assignment to the pre- and post-May 1, 2021, institutional reform groups during the survey fieldwork can be treated as approximating as-if random.

Table 1: Descriptive Statistics

Control group (respondents interviewed before May 1, 2021, institutional reform)					
Variable	Obs	Mean	Std. Dev.	Min	Max
Support for rule-bending executive	1,100	2.400	0.765	1	3
Age	1,130	39.208	14.912	18	86
Education	1,120	1.847	0.933	0	3
Gender	1,130	0.532	0.499	0	1
Democracy support	1,101	1.362	0.665	0	2
Residence	1,104	0.457	0.498	0	1
Treatment group (respondents interviewed after May 1, 2021, institutional reform)					
Variable	Obs	Mean	Std. Dev.	Min	Max
Support for rule-bending executive	1,142	2.326	0.808	1	3
Age	1,179	38.167	14.532	18	85
Education	1,176	1.994	0.907	0	3
Gender	1,179	0.529	0.499	0	1
Democracy support	1,152	1.385	0.662	0	2
Residence	1,145	0.465	0.499	0	1

LAPOP Lab. (2021). *AmericasBarometer El Salvador, 2021* (Version 1.0) [El_Salvador_2021]. Center for Global Democracy, Vanderbilt University. <https://www.vanderbilt.edu/lapop>

7.2 Main Analysis

Model 1 (Table 2) indicates a statistically significant difference in the levels of support for a rule-bending executive between individuals interviewed before and after the May 1, 2021, institutional reform at 5% level ($\beta = -0.103, p < 0.05$). The negative coefficient shows that support for a rule-bending executive is lower among respondents interviewed after the reform. The R^2 indicates that the May 1, 2021, institutional reform has minimal explanatory power, 0.1% of the variance in support for a rule-bending executive.

In model 2 (Table 2), after controlling for age, education, gender, democracy support and residence, the effect of the May 1, 2021, institutional reform on the support for a rule-bending executive remains negative but becomes no longer statistically significant ($\beta = -0.0915, p > 0.05$). Therefore, the results provide only partial evidence in support of this study's first hypothesis. Although the direction of the relationship remains consistent in models 1 and 2, the null hypothesis of zero

effect cannot be rejected once the controls are added. Age is positively associated with the support for a rule-bending executive at 0.1% level ($\beta = 0.00652, p < 0.001$). That indicates that a one-year increase in age is related to a 0.00652-unit increase in support, on average, holding other variables constant. So, older people are more supportive of executive overreach.

Regarding democracy support, the difference between individuals showing low support and respondents showing moderate support is positive and not statistically significant at the 5% level ($\beta = 0.176, p > 0.05$), while the difference with respondents illustrating higher support is positive and statistically significant at the 0.1% level ($\beta = 0.343, p < 0.001$). Although these findings may seem inconsistent with expectations, they align with previous findings showing that citizens may simultaneously support democracy and strong leaders with unchecked political power who claim to represent people's interests (Krishnarajan, 2023). I read this as depicting citizens' conflicting understandings of democracy. Citizens, scoring high on supporting democracy, may endorse democracy primarily in its electoral sense, while being indifferent toward non-majoritarian institutions such as the judiciary — especially when they perceive no tangible benefit from them. In contrast, toward the incumbent, the logic may be in the opposite direction, as citizens can be willing to trade off democratic principles in exchange for tangible benefits the executive seems to deliver (Krishnarajan, 2023; Wunsch et al., 2025). In El Salvador, this dynamic is salient, as Bukele's increased popularity is associated with improvements in security despite substantial democratic backsliding (Nilsson, 2022; Wolf, 2021).

Education exhibits a negative statistically significant effect on supporting a rule-bending executive at 1% level ($\beta = -0.0929, p < 0.01$), showing that more highly educated individuals are less likely to support incumbent overreach. The difference between respondents living in rural and urban areas is negative and statistically significant at the 5% level ($\beta = -0.114, p < 0.05$), indicating a rural-urban divide as people residing in urban areas are less tolerant of executive overreach than those living in rural areas. In contrast, gender does not indicate statistically significant effects on support for a rule-bending executive. The difference between men and women is statistically insignificant, showing that gender is not a significant predictor of attitudes toward executive overreach ($\beta = -0.0145, p > 0.05$).

The R^2 increases from 0.1% to 2.6%, indicating that including these controls improves slightly the explanatory power of the model. However, a substantial share of the variance in support for a rule-bending executive remains unexplained, underlining the influence of other confounding factors.

Table 2: OLS Bivariate and Multivariate Regression

Support for a rule-bending executive		
	Model 1	Model 2
Exposure to May 1, 2021, reform	-0.103* (0.0507)	-0.0915 (0.0516)
Age in years		0.00652*** (0.00184)
Education level		-0.0929** (0.0317)
Female		-0.0145 (0.0519)
Moderate support for democracy		0.176 (0.0905)
High support for democracy		0.343*** (0.0888)
City/suburb		-0.114* (0.0556)
Constant	3.576*** (0.0362)	3.314*** (0.137)
Observations	2,242	2,124
Adjusted R^2	0.001	0.026

*** $p \leq 0.001$, ** $p \leq 0.01$, * $p \leq 0.05$

Note: Standard errors in parentheses at 95% confidence interval. Reference categories: Male; Low support for democracy; Town/rural area. LAPOP Lab. (2021). *AmericasBarometer El Salvador, 2021* (Version 1.0) [El_Salvador_2021]. Center for Global Democracy, Vanderbilt University. <https://www.vanderbilt.edu/lapop>

Model 3 (Table 3) examines whether the influence of May 1, 2021, institutional reform on tolerance for a rule-bending executive differs by levels of approval concerning incumbent's job performance. The interaction between May 1, 2021, institutional reform and (dis) approval of the incumbent's performance is introduced, with disapproval as the reference category. The interaction between neutral evaluation of president's performance and being exposed to the reform, is positive, weak and not statistically significant ($\beta = 0.139$, $p > 0.05$), indicating that the reform did not

produce a differential effect on support for executive rule bending among respondents reporting neutral evaluations compared to those disapproving president's performance. Similarly, the interaction between approving incumbent's performance and being exposed to the reform is positive, weak and statistically insignificant ($\beta = 0.114, p > 0.05$), illustrating that the reform did not lead to a different response between respondents approving the incumbent's performance and the respondents disapproving it. Consequently, the null hypothesis of no difference in the effect of the reform across the (dis) approval groups cannot be rejected.

The coefficient on being interviewed after the May 1, 2021, ($\beta = -0.100, p > 0.05$) is interpreted when performance-based evaluation equals zero (disapproval), capturing the effect of the reform on tolerance toward a rule-bending executive among respondents disapproving incumbent's performance. The coefficient indicates a negative, weak and statistically insignificant effect for this group. The coefficient on neutral evaluation of incumbent's performance ($\beta = 1.227, p < 0.001$) is interpreted when the reform indicator equals zero—that is, prior to the reform—and indicates that respondents reporting a neutral view of presidential performance, before the reform, report higher support for the executive by 1.227 units on average compared to disapproving respondents. Similarly, the coefficient on approving the incumbent's performance ($\beta = 1.942, p < 0.001$) indicate that approvers, before the reform, express higher support by 1.942 units on average compared to disapproving respondents. Both effects are statistically significant at the 0.1% level, showing that (dis) approval of incumbent's performance is strongly associated with tolerance of executive rule-bending. The R^2 indicates that the model explains roughly 12.7% of the total variance in tolerance for executive rule bending.

In Model 4 (Table 3), demographic and political controls are added. The interaction between neutral evaluation of the incumbent's performance and the reform remains positive, weak and statistically insignificant ($\beta = 0.112, p > 0.05$). Likewise, the interaction between approving the president's performance and the reform remains also positive and statistically insignificant ($\beta = 0.0789, p > 0.05$), confirming that the reform did not produce heterogeneous effects across (dis) approval groups even after controlling for specific variables. The coefficient on the reform ($\beta = -0.0753, p > 0.05$) is negative, weak and statistically insignificant among respondents disapproving presidential performance, illustrating no meaningful change in tolerance for them. The coefficient on neutral evaluation of incumbent's performance ($\beta = 1.263, p < 0.001$) remains strong, positive and

statistically significant at the 0.1% level, with this group reporting higher support by 1.263 units on average, compared to respondents disapproving it prior to the reform. Similarly, the coefficient on approving incumbent's performance ($\beta = 1.963, p < 0.001$) remains strong, positive and statistically significant at the 0.1% level, with respondents approving executive's performance reporting higher support toward rule-bending by 1.963 units on average compared to respondents disapproving it before the reform.

Concerning the controls, age displays a positive and statistically significant at the 0.1% level effect ($\beta = 0.00936, p < 0.001$), showing that a one-unit increase in age is associated with a 0.00936-unit increase in tolerance of executive rule-bending. In alignment with Model 2 in Table 2, as people turn older, they express higher support for authoritarian-leaning behaviors. Education ($\beta = 0.0346$), gender ($\beta = 0.00338$), moderate democracy support ($\beta = 0.0812$), high support for democracy ($\beta = 0.185$) and residence ($\beta = -0.0160$) are not statistically significant predictors.

The R^2 increases from 12.7 % to 13.7%, indicating a slight improvement in the explanatory power of the model. Nevertheless, the strong effect of (dis) approval of incumbent's performance across Model 3 and 4, illustrates that this is an important predictor of support for executive rule-bending, even though reform did not lead to a statistically significant moderating effect on this relationship. The margin plots (Figures A4 and A6 in the Appendix) align with the regression results, showing no meaningful difference before and after the reform at the levels of approval of incumbent's performance.

Across all models, the reform does not display a statistically significant effect on citizens' tolerance for a rule-bending executive once controls are introduced. While Model 1 illustrates a small negative and statistically significant effect, this changes in Model 2 and Models 3 and 4. Consequently, the null hypothesis of zero effect cannot be rejected. The strong and highly significant coefficients on neutral evaluation and approval of incumbent's performance may suggest that tolerance for a rule-bending executive was already closely associated with performance-based evaluation of the incumbent before the May 1, 2021, reform, leaving little room for further changes in attitudes. This, combined with the consistently high baseline levels of support for a rule-bending executive across pre- and post-reforms groups (mean ≈ 2.4 and mean ≈ 2.3 , respectively), point the need for further reflection.

Table 3: OLS Bivariate and Multivariate Regression with Interaction Term

Support for a rule-bending executive		
	Model 3	Model 4
Exposure to May 1, 2021, reform	-0.100 (0.393)	-0.0753 (0.391)
Neutral	1.227*** (0.351)	1.263*** (0.352)
Approve	1.942*** (0.328)	1.963*** (0.330)
Neutral × May 1, 2021, reform	0.139 (0.432)	0.112 (0.430)
Approval × May 1, 2021, reform	0.114 (0.400)	0.0789 (0.399)
Age in years		0.00936*** (0.00249)
Education level		0.0346 (0.0444)
Female		0.00338 (0.0704)
Moderate support for democracy		0.0812 (0.137)
High support for democracy		0.185 (0.135)
City/suburb		-0.0160 (0.0758)
Constant	1.500*** (0.323)	0.936* (0.384)
Observations	1,037	1,037
Adjusted R ²	0.127	0.137

***p≤0.001, **p≤0.01, *p≤0.05

Note: Standard errors in parentheses at 95% confidence interval. Reference categories: Disapproval of the president's performance; Male; Low support for democracy; Town/rural area. Presidential approval is measured by AmericasBarometer item M1 (President Bukele job-performance evaluation), available only in Form A of the split-sample 2021 questionnaire, which explains the reduced sample size. LAPOP Lab. (2021). *AmericasBarometer El Salvador, 2021* (Version 1.0) [El_Salvador_2021]. Center for Global Democracy, Vanderbilt University. <https://www.vanderbilt.edu/lapop>

7.3 Cross-Wave Check in 2018, 2021 and 2023

The patterns identified in the main analysis raise the question of whether the robust association between tolerance of executive overreach and performance-based evaluation reflects a broader and consistent tendency in Salvadoran public opinion that predates the reform.

To evaluate this, I test this relationship across the 2018, 2021, and 2023 AmericasBarometer waves (Tables A1-A3 in the Appendix). Across the three waves, I estimate the same model specification, examining the association between presidential approval and tolerance for executive aggrandizement, in both bivariate and multivariate models, using the same set of controls. Because the AmericasBarometer questionnaire varies across waves, tolerance of executive overreach is measured differently in each round (see Tables A1-A3 in the Appendix). Although this limits direct comparison of coefficient magnitudes, the direction, statistical significance and explanatory power of the relationships are still meaningful for comparison.

In 2018, under Sánchez Cerén and FMLN administration (Meléndez-Sánchez, 2021), the association between presidential approval and tolerance is weak in both models. Approval of presidential performance indicates a positive and statistically significant effect on tolerance in both the bivariate ($\beta = 0.137, p < 0.01$) and multivariate ($\beta = 0.132, p < 0.01$) models at the 1% level, while the difference between neutral evaluations and disapproval is not statistically significant in both models ($\beta = -0.0116$ and $\beta = 0.00808, p > 0.05$). The R^2 illustrates that performance-based evaluation explains 1.9% of the total variance in tolerance.

By 2021, this relationship is substantially intensified. Both the coefficients on approval of presidential performance and neutral evaluation are robust, positive and statistically significant at the 0.1% level in both the bivariate ($\beta = 1.841$ and $\beta = 1.121, p < 0.001$) and multivariate ($\beta = 1.806$ and $\beta = 1.128, p < 0.001$) models, indicating that both approving and neutral respondents report higher tolerance compared to disapproving ones. The increased R^2 of 13.5% in the multivariate model illustrates that presidential approval emerges as a strong predictor of tolerance during Bukele's presidency.

In 2023, this trend persists. The coefficients on approval and neutral evaluation of presidential performance remain positive and statistically significant at the 0.1% level in both bivariate ($\beta = 0.397$ and $\beta = 0.309, p < 0.001$) and multivariate ($\beta = 0.348$ and $\beta = 0.268, p < 0.001$) models,

indicating that approvers and neutral respondents continue to report higher tolerance compared to disapprovers. The R^2 (5.5%) is lower than its 2021 peak but remains substantially higher than in 2018 baseline, suggesting that performance-based tolerance stabilized at a new equilibrium. These findings are also consistent with Figure A12 in the Appendix, which visualizes the intensification of the approval-tolerance association between 2018 and 2021 and its stabilization in 2023.

These results provide support for the main analysis. The shift in the neutral respondents is particularly revealing. In 2018, only outright supporters of the presidential performance indicated statistically significant difference with disapprovers of it. In contrast in 2021 and 2023, both neutral and approval respondents show a sharp statistically significant difference compared to disapprovers, confirming their higher tolerance throughout the years. Moreover, the remarkable increase in the explanatory power of presidential approval between 2018 and 2021 —from 1.9% to 13.5%— and its stabilization well above the 2018 baseline in 2023 (5.5%) align with this study’s expectation that, in contexts of partisan de-institutionalization, performance-based evaluation replaces partisanship as the primary criterion through which citizens evaluate democratic transgressions. The collapse of the ARENA-FMLN bipolar party system and the rise of Bukele as an anti-establishment outsider created the conditions under which this transformation occurred.

Therefore, despite the short-lived reaction to the reform noticed in Model 1 (Table 2), the cross-wave trajectory suggests an attitudinal tendency that consolidated before the reform and reinforced further afterwards, illustrating that the theorized mechanisms accumulated over the years preceding it.

The following section evaluates findings’ robustness under a narrower ± 1 -day window before and after the reform.

7.4 Robustness Check: Narrow Bandwidth (± 1 Day)

Considering that in UESD, estimates may be sensitive to the chosen fieldwork window, I conduct a bandwidth analysis by limiting the sample to respondents interviewed within 1 day before and after the reform, yielding 397 observations in the bivariate and 384 in the multivariate models. After including approval of presidential performance in the interaction models, the sample is reduced to 158 observations.

The core conclusions are partly altered (Table A4 in the Appendix). In the bivariate model, the effect of the reform is larger in magnitude than in the main analysis and is statistically significant at the 5% level ($\beta = -0.248, p < 0.05$). This illustrates that respondents interviewed within one day after the reform, reported lower support for executive overreach than respondents interviewed before. In the multivariate model, this relationship remains negative and statistically significant at the 5% level ($\beta = -0.247, p < 0.05$).

In the interaction models, the interaction between neutral evaluation of president's performance and being exposed to the reform is statistically insignificant both in models 3 ($\beta = 0.329, p > 0.05$) and 4 ($\beta = 0.146, p > 0.05$). Similarly, the interaction between approving president's performance and being exposed to the reform is not statistically significant in both models 3 ($\beta = 0.569, p > 0.05$) and 4 ($\beta = 0.518, p > 0.05$).

Aligned with the main analysis findings, the performance-based evaluation emerges as a strong predictor of tolerance for executive rule-bending also within this tighter bandwidth. The coefficient on neutral evaluation of presidential performance is positive but not statistically significant in Model 3 ($\beta = 1.028, p > 0.05$), while it becomes positive and statistically significant at the 5% level in Model 4 ($\beta = 1.442, p < 0.05$), with neutral respondents reporting higher support compared to disapproving respondents prior to the reform. In contrast, the coefficient on approving the presidential performance remains strong, positive and statistically significant in both models 3 ($\beta = 1.770, p < 0.01$) and 4 ($\beta = 2.126, p < 0.001$), showing that respondents approving presidential performance report higher support for executive overreach compared to disapproving respondents before the reform.

Concerning the controls, age is not statistically significant in Model 2 ($\beta = 0.00674, p > 0.05$) but becomes positive and significant at the 0.1% level in Model 4 ($\beta = 0.0219, p < 0.001$). Education is not statistically significant in Model 2 ($\beta = -0.0173, p > 0.05$) but becomes positive and significant at the 5% level in Model 4 ($\beta = 0.276, p < 0.05$). Gender, support for democracy, and residence are insignificant across all models.

These findings partly confirm the results of the main analysis. Within the 1-day bandwidth—where the UESD excludability assumption is most plausible, as the tighter timeframe restricts possible influence from collateral events—the null moderating effect of presidential approval remains the same. Although the effect of the reform (H_1) is in the opposite direction of this study's hypothesis,

it is statistically significant in both the bivariate and multivariate models. That indicates a consistent short-lived decline in the tolerance of executive within this slightly narrower timeframe compared to the main analysis, where the effect becomes statistically insignificant once controls are added.

The following section interprets the study's findings, considering methodological limitations of the UESD design, potential explanations grounded in the consolidation of public attitudes before the reform and the specificities of the El Salvadoran context.

8. Discussion

8.1 Potential explanations for the null results

The study's partly null results call for a substantive interpretation grounded in the case's unique context. The short-lived effect in the opposite direction of H_1 , indicated in Model 1 and the ± 1 -day bandwidth check, may depict a brief concern among respondents interviewed directly after the reform, not exclusively about the judiciary, but about democratic principles in general.

Three potential explanations are suggested for the absence of a noticeable treatment effect over the full fieldwork timeline, showing that the May 1, 2021, reform occurred at a moment when citizens' attitudes had already been formed, leaving restricted scope for the event to generate additional change.

One possible interpretation is that citizens' attitudes toward executive rule-bending may have been already established prior to May 1, meaning that the reform did not act as new information. Confrontations between the Bukele administration and the judiciary escalated since 2020, particularly during the pandemic era (Meléndez-Sánchez, 2021). By the time of the judges' dismissal, public opinion had already stabilized, and the reform confirmed the existing tendencies rather than acting as an informational shock. This interpretation aligns with prior research (Castanho-Silva, 2018; Vlandas & Halikiopoulou, 2025), showing that sustained exposure to similar events—such as terrorist attacks and related media coverage—can restrict the impact of highly salient events. The descriptive statistics further support this, with almost identical means of the dependent variable before and after the reform (2.40 versus 2.32).

Moreover, another related explanation concerns anticipation. As Muñoz et al. (2019) underline, under the UESD design respondents cannot anticipate the precise occurrence of the event. While this assumption holds for the exact date of the reform, Bukele's move against the Constitutional Chamber was possibly anticipated following the February 2021 legislative elections, when *Nuevas Ideas* gained a 56-seat supermajority (Hernández, 2025). So, if citizens had already adjusted their attitudes, this enactment may not contribute to any additional change.

A third explanation relates to the asymmetric distribution of attitudes in the sample. Already before May 1, 2021, a large share of citizens exhibited high tolerance of a rule-bending executive; 631 out of 1,100 pre-reform respondents reported support, compared to 190 who opposed and 279 who reported neutral. Consequently, the pre-reform distribution leaves little room for further increase — a ceiling effect (Chyung et al., 2020; Nägel & Nivette, 2023). The smaller group of opponents may have reacted sceptically, but their smaller size muted any noticeable change. The strong effect of presidential approval ($\beta = 1.942$ and $\beta = 1.963$, $p < 0.001$) and being neutral about it ($\beta = 1.227$ and $\beta = 1.263$, $p < 0.001$) may further explain this pattern. Respondents who approved and were neutral about Bukele's performance were already more tolerant of executive overreach, showing that the distribution of the dependent variable reflects the approval-based evaluation findings. This may limit the influence of the reform to further shape attitudes.

Concerning the theoretical implications of these findings, the null results do not undermine necessarily the core argument. The three-step process —public detachment from the judiciary, delegitimization of courts, and legitimization of court-curbing— may have shaped public attitudes long before the reform, as low trust in institutions and Bukele's rhetoric against courts pre-existed the reform. Therefore, the theoretical mechanisms operate as a cumulative process rather than a discrete shock, while the short-lived effect in Model 1 and ± 1 -day bandwidth is consistent with this understanding as the brief negative reaction did not lead to a stable change in the distribution of tolerance. The cross-wave findings provide support for this interpretation. As shown in Figure A12, the association between approval and tolerance intensified importantly from 2018 to 2021 and stabilized in 2023. This trajectory suggests that in contexts of partisan disruption, the theorized mechanisms contributing to tolerance for court-curbing reach the public substantially through performance-based evaluations.

Beyond these substantive explanations for the study’s results, the analysis is also subject to several methodological constraints. The following section discusses the main limitations of this study.

8.2 Study’s limitations

This study has several limitations that should be considered when interpreting its findings.

The UESD design is inherently restricted to capturing short-term effects within the survey fieldwork period (Muñoz et al., 2019; Nägel & Nivette, 2023). The LAPOP fieldwork, conducted from April 21 to June 4 allows for a maximum post-treatment period of approximately five weeks, while the main analysis further restricts the timeframe to five days before and after the reform. However, prior research (Aydın-Çakır & Driscoll, 2025) suggests that the effects of seemingly formal reforms unfold gradually. Thus, potential long-term effects are unlikely to be detectable within this limited timeframe.

The excludability assumption may also be challenged by collateral events (Muñoz et al., 2019; Nägel & Nivette, 2023) surrounding May 1, such as media coverage on Bukele’s security agenda and the fight against gangs, the ongoing COVID-19 pandemic, and the consolidation of *Nuevas Ideas*’ supermajority in the legislative branch. Consequently, the influence of unobserved confounders cannot be ruled out.

As discussed above, the exposure to the reform may not have functioned as a shock to the public, as tensions with the judiciary had been escalating since 2020 and the control of the legislative branch in 2021 paved the way for the reform. The predictability of the event may therefore have weakened the estimated effect.

A more fundamental concern is that approval of presidential performance may be endogenous to the outcome. Approving of Bukele’s performance and tolerance of executive overreach may not be two separate things connected by a causal relationship, but expressions of the same attitude such as supporting Bukele because of his tough anti-crime agenda or other perceived trade-offs.

The sample distribution raises two concerns. Although the pre- and post-reform groups are broadly comparable (Table 1), the sample is very slightly unbalanced (1,134 pre versus 1,181 post). Moreover, the interaction models that include presidential performance rely on Form A of the split-

sample questionnaires, which reduces the sample size to 1,037 observations in the main analysis (490 pre versus 547 post) and to 158 observations (86 pre versus 72 post) in the robustness check (Table A4 in the Appendix). This may reduce statistical power and accuracy of the estimated effects (Gelman & Carlin, 2014).

Concerning external validity, this analysis focuses on El Salvador as a single case, with distinctive contextual conditions: a disrupted party system, historically high rates of public insecurity and gang violence and an exceptionally popular anti-establishment incumbent (Meléndez-Sánchez, 2021). These features make El Salvador a compelling case for examining citizens' reactions under conditions of party de-institutionalization such as in several Central and Latin American countries. Consequently, the generalizability of these findings is possibly restricted, as institutional legacies, socio-economic conditions and partisan dynamics may differ across settings.

A further limitation stems from the split-sample design of the 2021 AmericasBarometer questionnaire, in which respondents were randomly assigned to either Form A or B, with only a core set of questions asked to all respondents. Consequently, several theoretically relevant variables could not be included in the models. Satisfaction with democracy (PN4), and perceptions of corruption (EXC7) are included in Form A, while Awareness of the 1 May reform (CHANGE31) and Trust in the Supreme Court (B31) are in Form B. For example, perceptions of corruption, satisfaction with democracy and trust in the Supreme Court could have been added as meaningful controls. Although awareness of the reform could not be used as a control or interaction term, as it would cause multicollinearity with the treatment variable, it would have served as a manipulation check, verifying that post-reform respondents were exposed and more aware of the event than pre-reform respondents, thereby supporting the UESD's assumption of the treatment exposure (Muñoz et al., 2019).

A final limitation concerns the suitability of the theoretical framework and the research design. The mechanisms theorized in this study unfold cumulatively, with their consequences emerging over the long term, whereas the UESD as a research design is suitable to capture the immediate effects of a discrete shock. Possibly, longitudinal panels examining the gradual steps that anti-pluralist incumbents take before visible judicial and democratic erosion may better capture the framework's three-step process.

9. Conclusion

This study examined whether formal court-curbing reforms make citizens more tolerant of executive aggrandizement, using El Salvador's May 1, 2021, dismissal of the Constitutional Chamber judges under President Nayib Bukele. The results of the main analysis returned partly null findings for the study's hypothesis: that exposure to the May 1, 2021, reform increased citizens' tolerance of executive overreach. The (dis) approval of presidential performance emerges as a robust predictor of tolerance, indicating a consistent pattern across 2018, even more intensified in 2021 and stabilized in 2023 AmericasBarometer waves.

Despite the brief reaction reported directly after the reform in the bivariate model and in the tighter time window of ± 1 -day, the absence of significant effect suggests that attitudes had already been reshaped before the May 1, 2021, reform. The interplay between the three theorized mechanisms — public detachment from the judiciary, delegitimization of courts, and the legitimization of formal court-curbing — seems to have unfolded cumulatively in the months and years before the reform, while the high approval enjoyed by an exceptionally popular president seems to determine decisively public tolerance of executive overreach in contexts of partisan de-institutionalization such as El Salvador.

Future research can build on these findings in several ways. As briefly discussed in the previous section, longitudinal panel data tracking citizens' attitudes across earlier stages of democratic erosion can bring valuable insights into the cumulative dimension of this study's theorized mechanisms, as well as which of these three components carries the largest explanatory weight for tolerance of executive aggrandizement. Moreover, future work could explore what happens when the perceived trade-offs delivered by an anti-pluralist incumbent cease to materialize, and how this affects citizens' reactions to authoritarian-leaning strategies. Examining whether tolerance grounded in performance-based evaluation erodes or remains resilient once perceived trade-offs disappear would enhance our understanding of personalistic anti-pluralist regimes and the broader implications of democratic backsliding.

To conclude, the El Salvadoran case illustrates that the public's reaction to formal court-curbing cannot be interpreted from a single reform alone, but rather as the outcome of a long-term process. Where anti-pluralist actors successfully exploit citizens' dissatisfaction with the existing

establishment while cultivating a strong performance-based legitimacy, democratic erosion encounters limited public resistance. Although citizens may still represent the last bulwark against democratic violations (Wunsch et al., 2025), the conditions under which they can play this role appear narrower than assumed.

References:

- Aarslew, L. F. (2023). Why Don't Partisans Sanction Electoral Malpractice? *British Journal of Political Science*, 53(2), 407–423. <https://doi.org/10.1017/S0007123422000126>
- Aguiar-Aguilar, A. A. (2020). Courts and the Constitutional Erosion of Democracy in Latin America. The Varieties of Democracy (V-Dem) Institute. https://www.v-dem.net/media/publications/uwp_31_final.pdf
- Aguiar-Aguilar, A. A. (2023). Courts and the judicial erosion of democracy in Latin America. *Politics & Policy*, 51(1), 7–25. <https://doi.org/10.1111/polp.12516>
- Angrist, J. D., & Pischke, J.-S. (2015). Mastering 'metrics: The path from cause to effect. Princeton University Press.
- Aydın-Çakır, A. (2023). Court-curbing through legal reforms or coercion? In R. M. Howard, K. A. Randazzo, & R. A. Reid (Eds.), *Research Handbook on Law and Political Systems* (pp. 8–24). Edward Elgar Publishing. <https://doi.org/10.4337/9781800378346.00006>
- Aydın-Çakır, A. (2024). The varying effect of court-curbing: Evidence from Hungary and Poland. *Journal of European Public Policy*, 31(5), 1179–1205. <https://doi.org/10.1080/13501763.2023.2171089>
- Aydın-Çakır, A., & Akarçay, E. I. (2025). When do governments attack the judiciary? The explanatory power of political corruption. *International Review of Law and Economics*, 82, Article 106248. <https://doi.org/10.1016/j.irle.2025.106248>
- Aydın-Çakır, A., & Driscoll, A. (2025). On motives and means: How approach and justification for court-curbing impact public trust. *Democratization*, 32(4), 938–962. <https://doi.org/10.1080/13510347.2024.2428271>
- Aydın-Çakır, A., & Şekercioğlu, E. (2016). Public confidence in the judiciary: The interaction between political awareness and level of democracy. *Democratization*, 23(4), 634–656. <https://doi.org/10.1080/13510347.2014.1000874>
- Bartels, B. L., Horowitz, J., & Kramon, E. (2023). Can Democratic Principles Protect High Courts from Partisan Backlash? Public Reactions to the Kenyan Supreme Court's Role in the

2017 Election Crisis. *American Journal of Political Science*, 67(3), 790–807.

<https://doi.org/10.1111/ajps.12666>

Bartels, B. L., & Kramon, E. (2020). Does Public Support for Judicial Power Depend on Who is in Political Power? Testing a Theory of Partisan Alignment in Africa. *American Political Science Review*, 114(1), 144–163. <https://doi.org/10.1017/S0003055419000704>

Bermeo, N. (2016). On Democratic Backsliding. *Journal of Democracy*, 27(1), 5–19.

<https://doi.org/10.1353/jod.2016.0012>

Bessen, B. R. (2024). Populist Discourse and Public Support for Executive Aggrandizement in Latin America. *Comparative Political Studies*, 57(13), 2118–2151.

<https://doi.org/10.1177/00104140231223738>

Böhringer, E., & Boucher, C. (2024). Between impartiality and politicization: Confidence in the judiciary among political winners and losers. *Electoral Studies*, 87, 102714.

<https://doi.org/10.1016/j.electstud.2023.102714>

Caldeira, G. A., & Gibson, J. L. (1992). The Etiology of Public Support for the Supreme Court. *American Journal of Political Science*, 36(3), 635. <https://doi.org/10.2307/2111585>

Carlin, R. E., Castrellón, M., Gauri, V., Jaramillo Sierra, I. C., & Staton, J. K. (2022). Public Reactions to Noncompliance with Judicial Orders. *American Political Science Review*, 116(1), 265–282. <https://doi.org/10.1017/S0003055421000903>

Castanho-Silva, B. (2018). The (Non) Impact of the 2015 Paris Terrorist Attacks on Political Attitudes. *Personality and Social Psychology Bulletin*, 44(6), 838–850.

<https://doi.org/10.1177/0146167217752118>

Castillo-Ortiz, P. (2019). The Illiberal Abuse of Constitutional Courts in Europe. *European Constitutional Law Review*, 15(1), 48–72. <https://doi.org/10.1017/S1574019619000026>

Chapman, H. S., Hanson, M. C., Dzutsati, V., & DeBell, P. (2024). Under the Veil of Democracy: What Do People Mean When They Say They Support Democracy? *Perspectives on Politics*, 22(1), 97–115. <https://doi.org/10.1017/S1537592722004157>

Chiaramonte, A., & Emanuele, V. (2022). *The Deinstitutionalization of Western European Party Systems*. Springer International Publishing. <https://doi.org/10.1007/978-3-030-97978-2>

Chyung, S.Y., Hutchinson, D. and Shamsy, J.A. (2020). Evidence-Based Survey Design: Ceiling Effects Associated with Response Scales. *Perf. Improv.*, 59: 6-13.
<https://doi.org/10.1002/pfi.21920>

Dahl, R. A. (1957). Decision-making in a democracy: The Supreme Court as a national policy-maker. *J. Pub. L.*, 6, 279.

Dahl R.A. (1971). *Polyarchy: Participation and Opposition*. London: Yale University Press.

Driscoll, A., Aydın-Çakır, A., & Schorpp, S. (2024). Public (In) Tolerance of Government Non-Compliance with High Court Decisions. *Comparative Politics*, 57(1), 71–90.
<https://doi.org/10.5129/001041524X17142416158300>

Driscoll, A., & Nelson, M. J. (2023). The Costs of Court Curbing: Evidence from the United States. *The Journal of Politics*, 85(2), 609–624. <https://doi.org/10.1086/723021>

Frederiksen, K. V. S. (2024). Do partisanship and policy agreement make citizens tolerate undemocratic behavior? *The Journal of Politics*. Advance online publication.
<https://doi.org/10.1086/726938>

Gamboa, L. (2023). How Oppositions Fight Back. *Journal of Democracy*, 34(3), 90–104.
<https://doi.org/10.1353/jod.2023.a900435>

Gamboa, L., García-Holgado, B., & González-Ocantos, E. (2024). Courts against backsliding: Lessons from Latin America. *Law & Policy*, lapo.12246. <https://doi.org/10.1111/lapo.12246>

Gandur, M. (2025). Trust in the Judiciary and Partisan Reactions to Judicial Checks: Evidence from Argentina. *British Journal of Political Science*, 55, e126.
<https://doi.org/10.1017/S0007123425100781>

Gandur, M., Chewning, T. K., & Driscoll, A. (2025). Awareness of Executive Interference and the Demand for Judicial Independence: Evidence from Four Constitutional Courts. *Journal of Law and Courts*, 13(1), 122–147. <https://doi.org/10.1017/jlc.2024.20>

García del Horno, R., Lavín, M., & Riera, P. (2024). Do they feel like they don't matter? The rural–urban divide in external political efficacy. *West European Politics*, 47(5), 1059–1083.

<https://doi.org/10.1080/01402382.2023.2261085>

Garcia-Holgado, B. (2025). Overruling the Executive: Judicial Strategies to Resist Democratic Erosion. *Journal of Law and Courts*, 13(1), 274–303. doi:10.1017/jlc.2024.30

Garcia-Holgado, B., & Urribarri-Sanchez, R. (2024). The Dark Side of Legalism: Abuse of the Law and Democratic Erosion in Argentina, Ecuador, and Venezuela. *American Behavioral Scientist*, 68(12), 1578–1596. <https://doi.org/10.1177/00027642241268332>

Garoupa, N., & Spruk, R. (2024). Populist Constitutional Backsliding and Judicial Independence: Evidence from Türkiye. <https://dx.doi.org/10.2139/ssrn.5252847>

Gedan, B. N., & French, E. (2025). The Threat to Latin American Term Limits. *Journal of Democracy*, 36(4), 104–115. <https://doi.org/10.1353/jod.2025.a970352>

Gelman, A., & Carlin, J. (2014). Beyond Power Calculations: Assessing Type S (Sign) and Type M (Magnitude) Errors. *Perspectives on Psychological Science*, 9(6), 641–651. <https://doi.org/10.1177/1745691614551642>

Gessler, T., & Wunsch, N. (2025). A new regime divide? Democratic backsliding, attitudes toward democracy and affective polarization. *European Journal of Political Research*, 64(4), 1593–1617. <https://doi.org/10.1111/1475-6765.12751>

Geys, B., & Qari, S. (2017). Will you still trust me tomorrow? The causal effect of terrorism on social trust. *Public Choice*, 173(3–4), 289–305. <https://doi.org/10.1007/s11127-017-0477-1>

Gibson, J. L., & Caldeira, G. A. (2009). *Citizens, Courts, and Confirmations: Positivity Theory and the Judgments of the American People*. Princeton University Press. <https://doi.org/10.1515/9781400830602>

Gibson, J. L., & Nelson, M. J. (2017). Reconsidering Positivity Theory: What Roles do Politicization, Ideological Disagreement, and Legal Realism Play in Shaping U.S. Supreme Court Legitimacy? *Journal of Empirical Legal Studies*, 14(3), 592–617. <https://doi.org/10.1111/jels.12157>

- Graham, M. H., & Svolik, M. W. (2020). Democracy in America? Partisanship, Polarization, and the Robustness of Support for Democracy in the United States. *American Political Science Review*, 114(2), 392–409. <https://doi.org/10.1017/S0003055420000052>
- Haggard, S., & Tiede, L. (2025). Judicial backsliding: a guide to collapsing the separation of powers. *Democratization*, 32(2), 513–537. <https://doi.org/10.1080/13510347.2024.2381092>
- Healy, A., & Malhotra, N. (2013). Retrospective Voting Reconsidered. *Annual Review of Political Science*, 16(1), 285–306. <https://doi.org/10.1146/annurev-polisci-032211-212920>
- Hernández G., J. I. (2025). Presidential reelection and unconstitutional mutations in El Salvador: A case of constitutional authoritarian-populism. *Revista Derecho Del Estado*, (63), 243–264. <https://doi.org/10.18601/01229893.n63.04>
- Huddy, L., Bankert, A., & Davies, C. (2018). Expressive Versus Instrumental Partisanship in Multiparty European Systems. *Political Psychology*, 39(S1), 173–199. <https://doi.org/10.1111/pops.12482>
- Jacob, M. S. (2025a). Citizen support for democracy, anti-pluralist parties in power and democratic backsliding. *European Journal of Political Research*, 64(1), 348–373. <https://doi.org/10.1111/1475-6765.12703>
- Jacob, M. S. (2025b). Citizens as a democratic safeguard? The sequence of sanctioning elite attacks on democracy. *American Journal of Political Science*, 69(2), 455–470. <https://doi.org/10.1111/ajps.12847>
- Jansesberger, V., & Rhein, S. (2024). Different Perspectives on Democracy as an Explanation for the “Populist Radical Right Gender Gap”? *Politics and Governance*, 12, Article 8579. <https://doi.org/10.17645/pag.8579>
- Juzgenbayev, A. (2025). Framing the Judiciary: Effects of Partisan, Procedural, and Populist Frames on Apex Court Perceptions in Czechia. *Journal of Law and Courts*, 13(1), 97–121. <https://doi.org/10.1017/jlc.2024.17>
- Kaftan, L. (2024). Lip service to liberal democracy in Western Europe? *European Political Science Review*, 13, 1–18. <https://doi.org/10.1017/S1755773924000079>

- Kaftan, L., & Gessler, T. (2025). The Democracy I Like: Perceptions of Democracy and Opposition to Democratic Backsliding. *Government and Opposition*, 60(2), 358–381.
<https://doi.org/10.1017/gov.2024.12>
- Keele, L. (2015). The Statistics of Causal Inference: A View from Political Methodology. *Political Analysis*, 23(3), 313–335. <https://doi.org/10.1093/pan/mpv007>
- Koos, A. K. (2025). Supply-Side Anti-Pluralists and Demand-Side Anti-Plutocrats: The Case of 21st Century Populism. *Political Research Quarterly*, 78(2), 797–813.
<https://doi.org/10.1177/10659129251319722>
- Kosař, D. (2025). Embedding Strategies of the European Apex Courts: Why Court Communication with All Segments of Society Matters. *German Law Journal*, 26(2), 274–298.
doi:10.1017/glj.2025.3
- Krishnarajan, S. (2023). Rationalizing Democracy: The Perceptual Bias and (Un) Democratic Behavior. *American Political Science Review*, 117(2), 474–496.
<https://doi.org/10.1017/S0003055422000806>
- LAPOP Lab. (2021). The AmericasBarometer 2021: El Salvador [El_Salvador_2021]. Vanderbilt University. <https://www.vanderbilt.edu/lapop/>
- LAPOP Lab. (2021). AmericasBarometer 2021: El Salvador questionnaire. Vanderbilt University. <https://www.lapop.vanderbilt.edu/>
- Leeper, T. J., & Slothuus, R. (2014). Political parties, motivated reasoning, and public opinion formation. *Political Psychology*, 35(S1), 129–156. <https://doi.org/10.1111/pops.12164>
- Lewkowicz, J., Woźniak, R., Lewczuk, A., & Marcol, M. (2024). The longer the worse? The case of populism, anti-pluralism, and constitutional compliance. *Democratization*, 31(1), 132–156.
<https://doi.org/10.1080/13510347.2023.2258341>
- Llanos, M., & Tibi-Weber, C. (2023). Court–Executive Relations during the COVID-19 Pandemic. In M. Llanos & L. Marsteintredet, *Latin America in Times of Turbulence* (1st ed., pp. 128–147). Routledge. <https://doi.org/10.4324/9781003324249-7>

- Luján, D., & Puig-Lombardi, G. (2026). The personalistic challenge: The rise of Bukele and the collapse of an ideologically structured party system in El Salvador. *International Political Science Review*, 47(2), 299–314. <https://doi.org/10.1177/01925121251321566>
- Magalhães, P. C., & Garoupa, N. (2024). Populist governments, judicial independence, and public trust in the courts. *Journal of European Public Policy*, 31(9), 2748–2774. <https://doi.org/10.1080/13501763.2023.2235386>
- Magalhães, P. C., Skiple, J. K., Pereira, M. M., Arnesen, S., & Bentsen, H. L. (2023). Beyond the Myth of Legality? Framing Effects and Public Reactions to High Court Decisions in Europe. *Comparative Political Studies*, 56(10), 1537–1566. <https://doi.org/10.1177/00104140231152769>
- Merino-Menjivar, M. A. (2024). The Removal of the Constitutional Chamber Justices in El Salvador: A Story About the Fragility of Judicial Independence. *Constitutional Review*, 10(2), 413–450. <https://doi.org/10.31078/consrev1025>
- Martinez, M. (2024). Democratic Backsliding: El Salvador’s State of Emergency and Use of Violence. *Georgetown Journal of International Affairs*, 25(1), 168–174. <https://doi.org/10.1353/gia.2024.a934900>
- Mazepus, H. (2025). Are Citizens Vigilant of Changing the Balance of Power? Testing Evaluations of Checks and Balances Reforms. *Political Research Quarterly*, 10659129251408709. <https://doi.org/10.1177/10659129251408709>
- Mazepus, H., & Toshkov, D. (2022). Standing up for democracy? Explaining citizens’ support for democratic checks and balances. *Comparative Political Studies*, 55(8), 1271–1297.
- Mazzoleni, O., & Voerman, G. (2020). *In the Name of Sovereignty. Right-Wing Populism and the Power of the Judiciary in Western Europe* (Version 1.0) [Dataset]. University of Salento. <https://doi.org/10.1285/I20356609V13I3P1417>
- Medzihorsky, J., & Lindberg, S. I. (2024). Walking the Talk: How to Identify Anti-Pluralist Parties. *Party Politics*, 30(3), 420–434. <https://doi.org/10.1177/13540688231153092>
- Meléndez-Sánchez, M. (2021). Latin America Erupts: Millennial Authoritarianism in El Salvador. *Journal of Democracy*, 32(3), 19–32. <https://doi.org/10.1353/jod.2021.0031>

- Mercier, H. (2017). How gullible are we? A review of the evidence from psychology and social science. *Review of General Psychology*, 21(2), 103–122. <https://doi.org/10.1037/gpr0000111>
- Mudde, C. (2004). The Populist Zeitgeist. *Government and Opposition*, 39(4), 541–563. <https://doi.org/10.1111/j.1477-7053.2004.00135.x>
- Muñoz, J., Falcó-Gimeno, A., Hernandez, E., & Political Analysis. (2019). *Replication Data for: Unexpected Event during Surveys Design: Promise and Pitfalls for Causal Inference* (Version 1.0, p. 38726011) [Application/zip]. Harvard Dataverse. <https://doi.org/10.7910/DVN/RDIIVL>
- Nägel, C., & Nivette, A. E. (2023). Unexpected events during survey design and trust in the police: A systematic review. *Journal of Experimental Criminology*, 19(4), 891–917. <https://doi.org/10.1007/s11292-022-09508-y>
- Nelson, M. J., & Driscoll, A. (2023). Accountability for Court Packing. *Journal of Law and Courts*, 11(2), 290–311. <https://doi.org/10.1017/jlc.2022.14>
- Nilsson, M. (2022). Nayib Bukele: Populism and autocratization, or a very popular democratically elected president? *Journal of Geography, Politics and Society*, 12(2), 16–26. <https://doi.org/10.26881/jpgs.2022.2.03>
- O'Donnell, G. A. (1998). Horizontal accountability in new democracies. *Journal of democracy*, 9(3), 112–126.
- Ordanoski, G., & Angiolillo, F. (2024). Incumbents' Strategies of Repression during Autocratization: Evidence from Hungary and North Macedonia, 1–30. <https://dx.doi.org/10.2139/ssrn.4877032>
- Palacios, I. (2025). How democratic backsliding and populism affect trust in democratic institutions. *Democratization*, 32(8), 1827–1850. <https://doi.org/10.1080/13510347.2025.2494246>
- Peffley, M., & Rohrschneider, R. (2024). Populism and Support for Limiting the Power of Constitutional Courts: The Case of Germany. *Political Behavior*, 46(4), 2497–2518. <https://doi.org/10.1007/s11109-024-09928-8>

- Perelló, L., & Navia, P. (2022). The disruption of an institutionalized and polarized party system: Discontent with democracy and the rise of Nayib Bukele in El Salvador. *Politics*, 42(3), 267–288. <https://doi.org/10.1177/02633957221077181>
- Petersen, M. B., Skov, M., Serritzlew, S., & Ramsøy, T. (2013). Motivated Reasoning and Political Parties: Evidence for Increased Processing in the Face of Party Cues. *Political Behavior*, 35(4), 831–854. <https://doi.org/10.1007/s11109-012-9213-1>
- Petrov, J. (2022). (De-) judicialization of politics in the era of populism: Lessons from Central and Eastern Europe. *The International Journal of Human Rights*, 26(7), 1181–1206. <https://doi.org/10.1080/13642987.2021.1931138>
- Petrov, J. (2024). Countering Democratic Decay Judicially: Is Resistance Futile? *ICL Journal*, 18(4), 595–628. <https://doi.org/10.1515/icl-2024-0019>
- Sartori G. (1997). Understanding pluralism. *Journal of Democracy* 8(4): 58–69.
- Saikkonen, I. A.-L., & Christensen, H. S. (2023). Guardians of Democracy or Passive Bystanders? A Conjoint Experiment on Elite Transgressions of Democratic Norms. *Political Research Quarterly*, 76(1), 127–142. <https://doi.org/10.1177/10659129211073592>
- Sánchez-Sibony, O. (2022). *Democracy without Parties in Peru: The Politics of Uncertainty and Decay*. Springer International Publishing. <https://doi.org/10.1007/978-3-030-87579-4>
- Sánchez-Sibony, O. (2024). Why Latin American Parties Are Not Coming Back. *Latin American Politics and Society*, 66(3), 164–193. <https://doi.org/10.1017/lap.2023.40>
- Simonovits, G., McCoy, J., & Littvay, L. (2022). Democratic hypocrisy and out-group threat: Explaining citizen support for democratic erosion. *The Journal of Politics*, 84(3), 1806–1811. <https://doi.org/10.1086/719009>
- Sperber, D., Clément, F., Heintz, C., Mascaro, O., Mercier, H., Origgi, G., & Wilson, D. (2010). Epistemic vigilance. *Mind & Language*, 25(4), 359–393. <https://doi.org/10.1111/j.1468-0017.2010.01394.x>

Svolik, M. W. (2020). *When Polarization Trumps Civic Virtue: Partisan Conflict and the Subversion of Democracy by Incumbents*.

Vlandas, T., & Halikiopoulou, D. (2025). Jihadist Terrorist Attacks and Far-Right Party Preferences: An “Unexpected Event During Survey Design” in Four European Countries. *Perspectives on Politics*, 23(1), 175–194. <https://doi.org/10.1017/S1537592723002980>

Wolf, S. (2021). A Populist President Tests El Salvador’s Democracy. *Current History*, 120(823), 64–70. <https://doi.org/10.1525/curh.2021.120.823.64>

Wunsch, N., & Gessler, T. (2023). Who tolerates democratic backsliding? A mosaic approach to voters’ responses to authoritarian leadership in Hungary. *Democratization*, 30(5), 914–937. <https://doi.org/10.1080/13510347.2023.2203918>

Wunsch, N., Jacob, M. S., & Derksen, L. (2025). The Demand Side of Democratic Backsliding: How Divergent Understandings of Democracy Shape Political Choice. *British Journal of Political Science*, 55, e39. <https://doi.org/10.1017/S0007123424000711>

Zulver, J., & Méndez, M. J. (2023, May 4). *El Salvador's "state of exception" makes women collateral damage*. Carnegie Endowment for International Peace. <https://carnegieendowment.org/2023/05/04/el-salvador-s-state-of-exception-makes-women-collateral-damage-pub-89686>

Appendix A: Figures & Tables

Figure A1. Coefficient estimate of exposure to the May 1, 2021, reform — Bivariate model

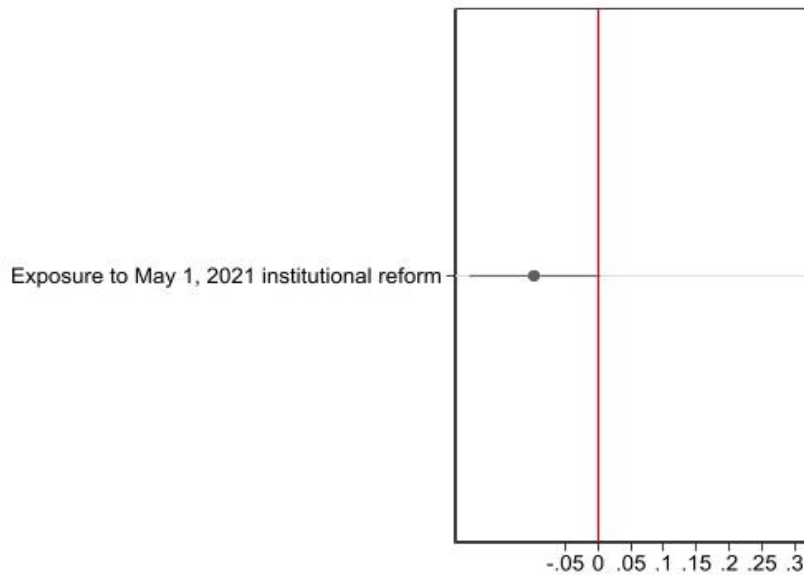


Figure A2. Coefficient estimates of exposure to the May 1, 2021, reform — With and without covariates

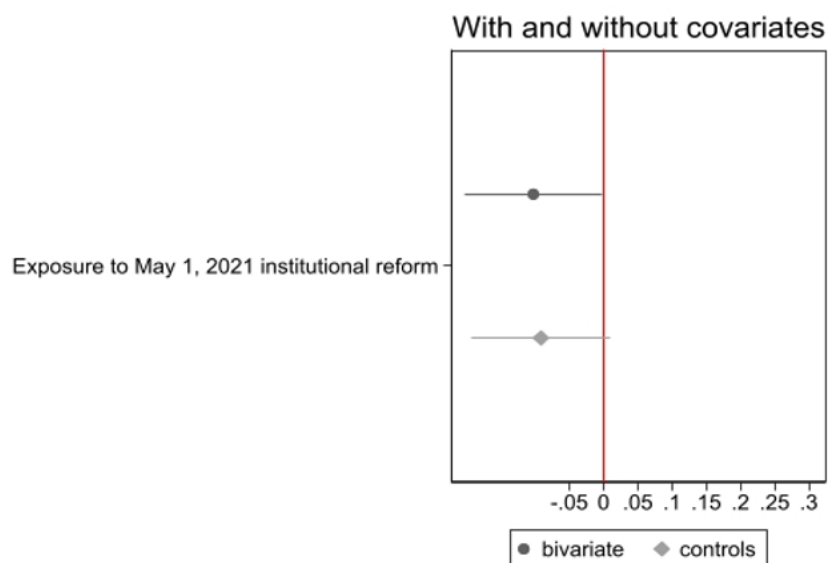


Figure A3. Adjusted predictions of support for a rule-bending executive, by (dis) approval of presidential performance — Without controls

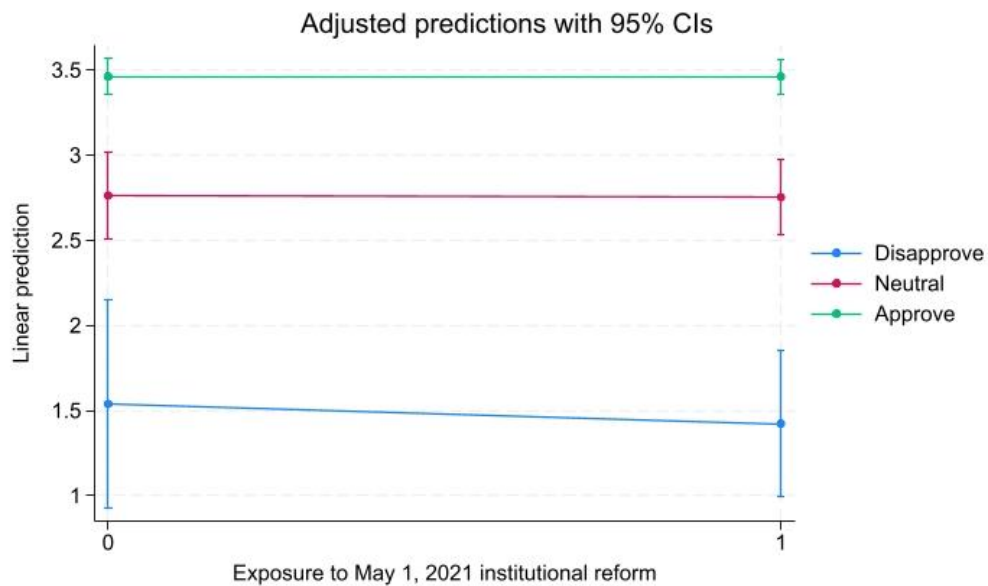


Figure A4. Average marginal effect of exposure to the reform across levels (dis) approval of presidential performance — Without controls

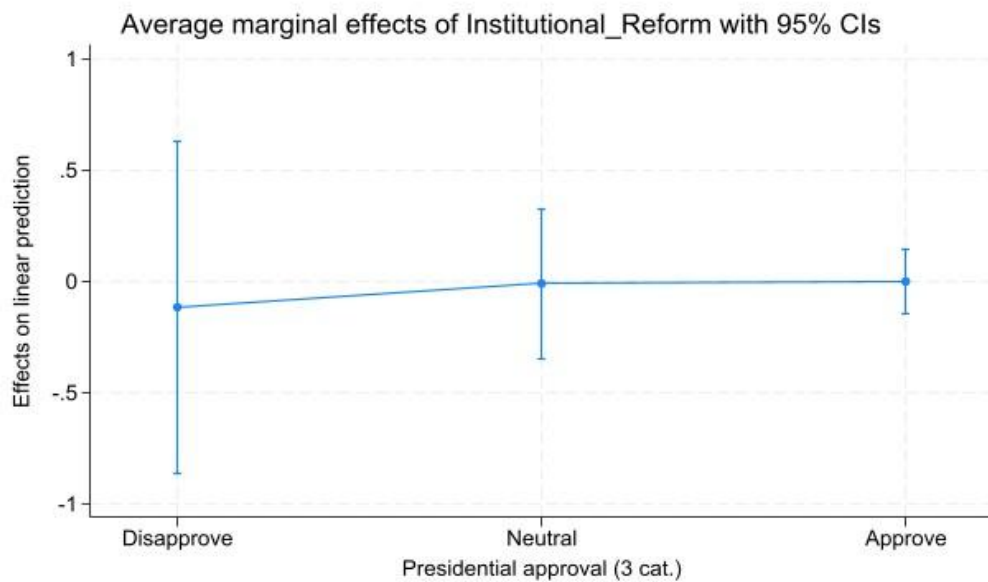


Figure A5. Adjusted predictions of support for a rule-bending executive, by (dis) approval of presidential performance — With controls

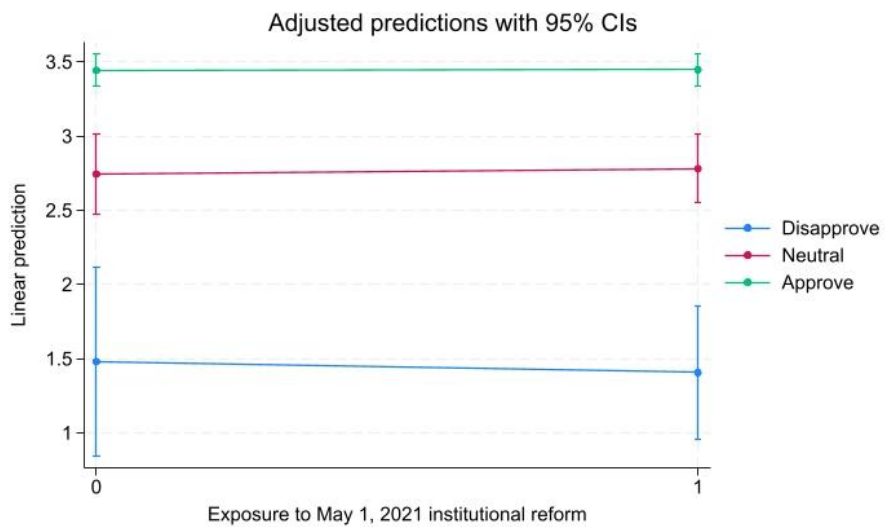


Figure A6. Average marginal effect of exposure to the reform across levels of (dis) approval of presidential performance — With controls

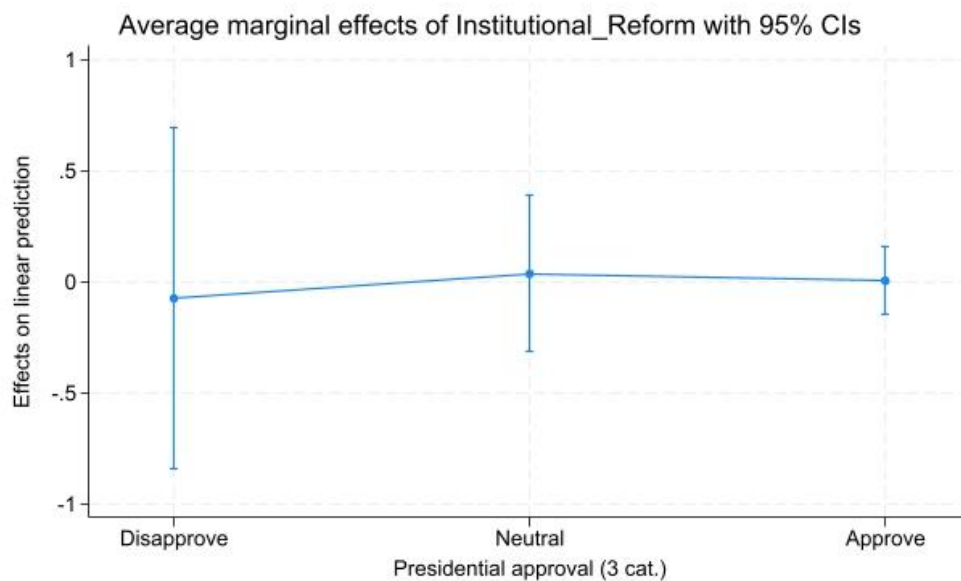


Figure A7. Coefficient estimates of exposure to the May 1, 2021, reform — Robustness check with and without controls

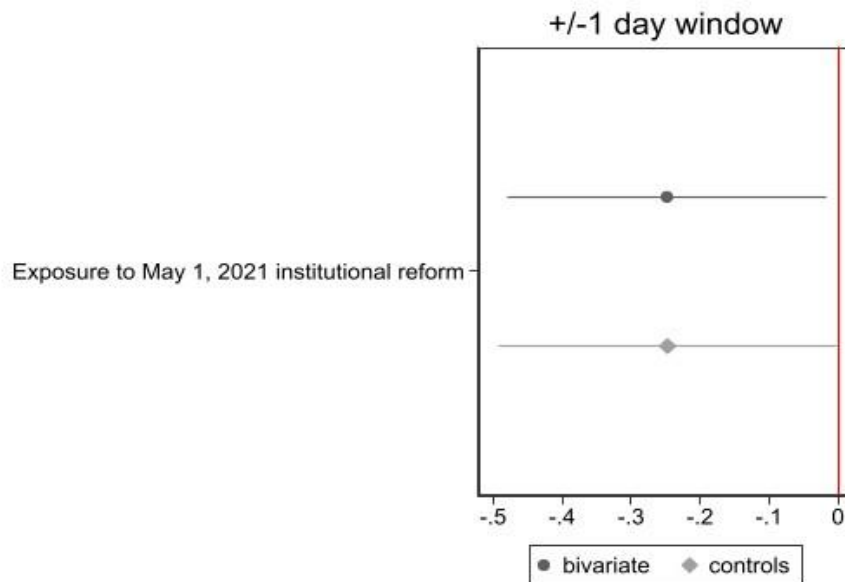


Figure A8. Adjusted predictions of support for executive overreach, by (dis) approval of presidential performance — Robustness check, without controls

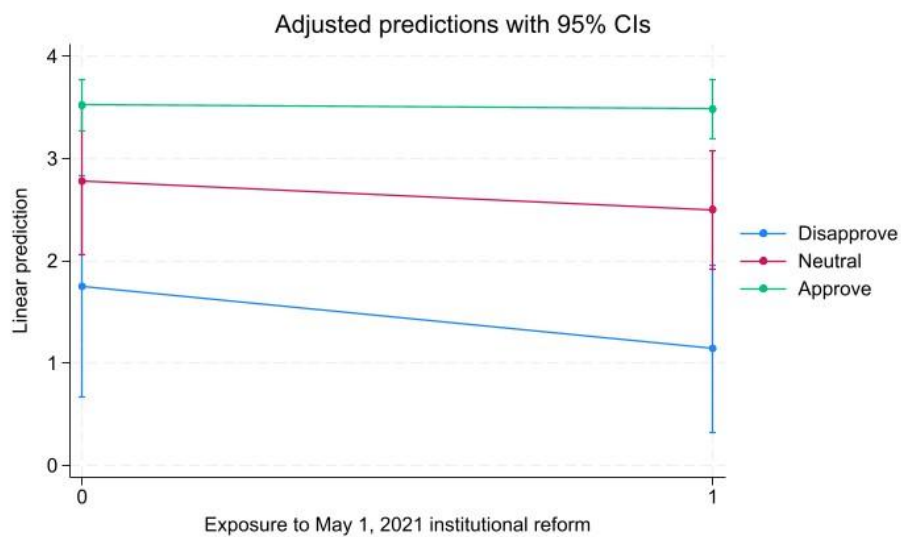


Figure A9. Average marginal effect of exposure to the reform across levels of (dis) approval of presidential performance — Robustness check, without controls

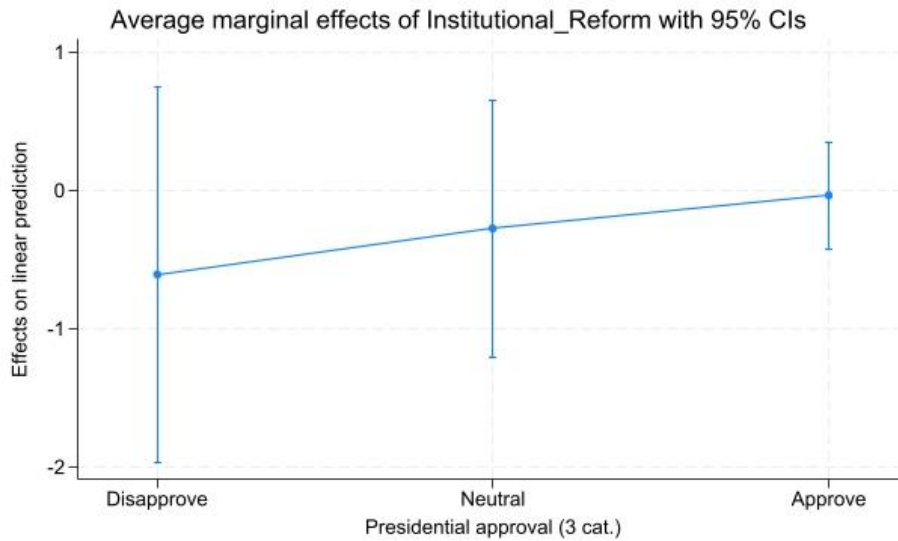


Figure A10. Adjusted predictions of tolerance of executive overreach, by (dis) approval of presidential performance — Robustness Check, with controls

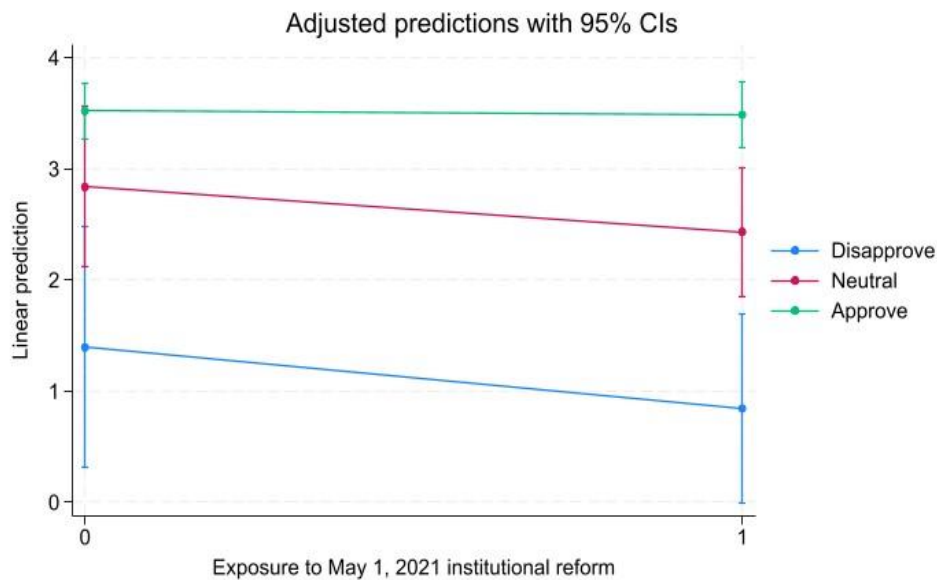


Figure A11. Average marginal effect of exposure to the reform across levels of (dis) approval of presidential performance — Robustness check, with controls

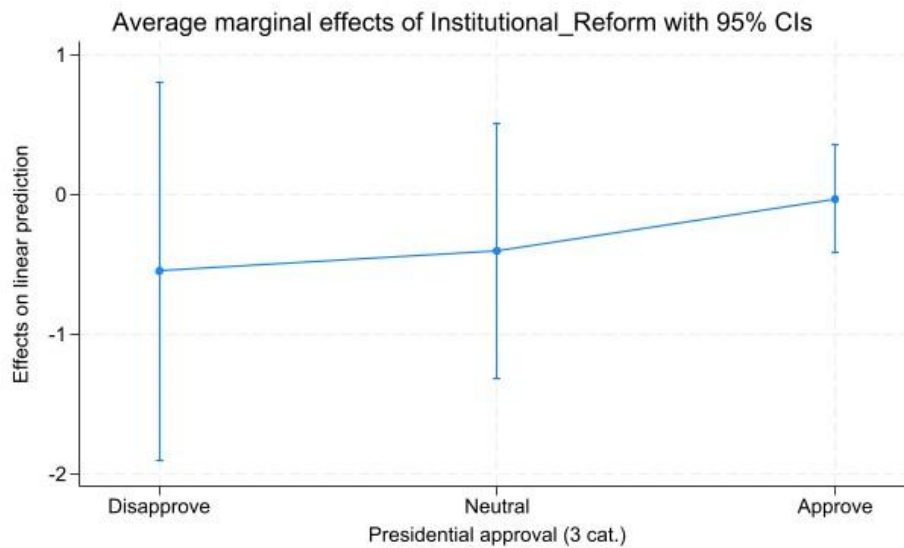


Figure A12. Coefficient estimates of presidential approval on tolerance for executive overreach across waves (2018, 2021, 2023)

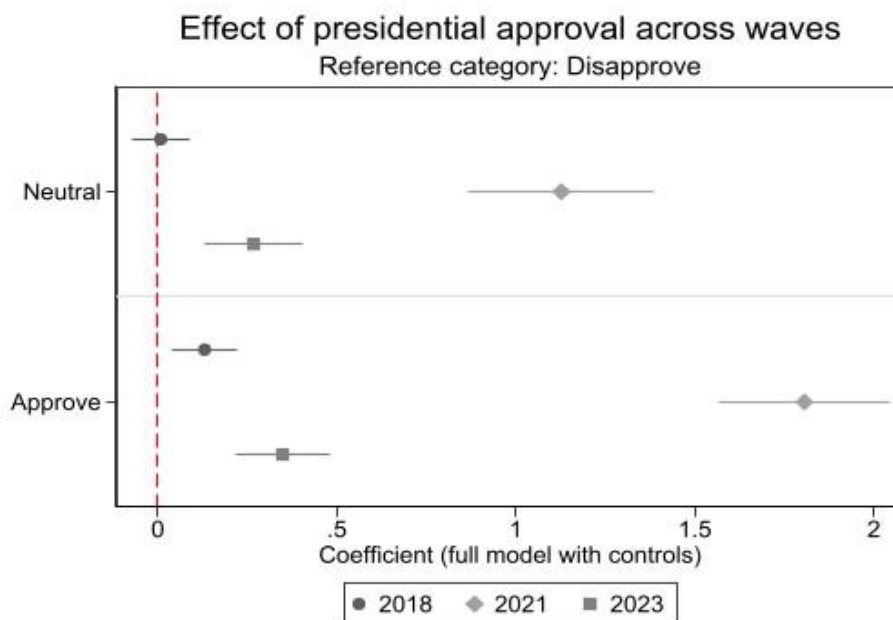


Table A1. Cross-Wave Check - OLS Regression of Tolerance for the executive rule overreach on approval of the incumbent's Performance — 2018 AmericasBarometer, El Salvador

Tolerance for president dissolving the Supreme Court		
	Model 1	Model 2
Neutral	-0.0116 (0.0402)	0.00808 (0.0423)
Approve	0.137** (0.0461)	0.132** (0.0471)
Moderate support for democracy		-0.159* (0.0683)
High support for democracy		-0.158* (0.0715)
Age in years		-0.00339** (0.00123)
Education		-0.0108* (0.00436)
Female		-0.0789* (0.0357)
City/suburb		-0.0250 (0.0380)
Constant	0.316*** (0.0302)	0.728*** (0.101)
Observations	1,389	1,260
Adjusted R ²	0.009	0.019

***p≤0.001, **p≤0.01, *p≤0.05

Note: Standard errors in parentheses at 95% confidence interval. Reference categories: Disapproval of the president's performance; Male; Low support for democracy; Town/rural area. The 2018 AmericasBarometer wave was developed under President Salvador Sánchez Cerén (FMLN). The outcome is an index measuring tolerance for executive rule-bending, derived from two survey items: whether respondents believe it is justified for the president to close the Legislative Assembly (JC15A) and whether it is justified for the president to dissolve the Supreme Court of Justice and govern without it (JC16A) during difficult times. Both variables were recoded so that higher values indicate greater support for executive aggrandizement and combined into an additive index ranging from 0 to 2. This index serves as the closest analogue to the main analysis outcome (CSES6N), which is not included in the 2018 LAPOP Lab. (2018). AmericasBarometer El Salvador, 2018 (Version 1.0) [El_Salvador_2018]. Center for Global Democracy, Vanderbilt University. <https://www.vanderbilt.edu/lapop>

Table A2. Cross-Wave Check - OLS Regression of Support for a Rule-bending Executive on Approval of the Incumbent's Performance — 2021 AmericasBarometer, El Salvador

Support for a rule-bending executive		
	Model 1	Model 2
Neutral	1.121*** (0.123)	1.128*** (0.132)
Approve	1.841*** (0.108)	1.806*** (0.121)
Moderate support for democracy		0.0773 (0.119)
High support for democracy		0.184 (0.120)
Age in years		0.0103*** (0.00211)
Education		-0.0172 (0.0382)
Female		0.0304 (0.0600)
City/suburb		-0.0649 (0.0651)
Constant	1.596*** (0.103)	1.144*** (0.204)
Observations	1,516	1,432
Adjusted R ²	0.115	0.135

***p ≤ 0.001, **p ≤ 0.01, *p ≤ 0.05

Note: Standard errors in parentheses at 95% confidence interval. Reference categories: Disapproval of the president's performance; Male; Low support for democracy; Town/rural area. Presidential approval is measured by AmericasBarometer item M1 (President Bukele job-performance evaluation), available only in Form A of the split-sample 2021 questionnaire, which explains the reduced sample size. LAPOP Lab. (2021). AmericasBarometer El Salvador, 2021 (Version 1.0) [El_Salvador_2021]. Center for Global Democracy, Vanderbilt University. <https://www.vanderbilt.edu/lapop>

Table A3. Cross-Wave Check - OLS Regression of Justification for Politicians Acting Outside the Law on Approval of the Incumbent's Performance — 2023 AmericasBarometer, El Salvador

Justification for politicians acting outside the law		
	Model 1	Model 2
Neutral	0.309*** (0.0707)	0.268*** (0.0707)
Approve	0.397*** (0.0663)	0.348*** (0.0667)
Moderate support for democracy		0.0656 (0.0544)
High support for democracy		0.102 (0.0550)
Age in years		-0.00510*** (0.000810)
Education		-0.0453*** (0.00817)
Female		-0.0315 (0.0244)
City/suburb		-0.00121 (0.0263)
Constant	0.261*** (0.0648)	0.589*** (0.0932)
Observations	1,509	1,497
Adjusted R ²	0.022	0.055

***p ≤ 0.001, **p ≤ 0.01, *p ≤ 0.05

Note: Standard errors in parentheses. Reference categories: Disapproval of the president's performance; Low support for democracy; Male; Rural area. The 2023 AmericasBarometer wave was developed under President Nayib Bukele (Nuevas Ideas). The outcome captures justification for politicians acting outside the law (CRG2) and serves as the closest analogue to the main analysis outcome (CSES6N), which is not included in the 2023 LAPOP Lab. (2023). AmericasBarometer El Salvador, 2023 (Version 1.0) [El_Salvador_2023]. Center for Global Democracy, Vanderbilt University. <https://www.vanderbilt.edu/lapop>

Table A4. Robustness Check — OLS Bivariate and Multivariate Regression with Interaction Term (1-Day Window around May 1, 2021)

	Support for a rule-bending executive			
	Model 1	Model 2	Model 3	Model 4
Exposure to May 1, 2021, reform	-0.248* (0.117)	-0.247* (0.122)	-0.607 (0.687)	-0.550 (0.684)
Age in years		0.00674 (0.00445)		0.0219*** (0.00617)
Education level		-0.0173 (0.0728)		0.276* (0.111)
Female		0.0438 (0.119)		0.119 (0.174)
Moderate support for democracy		0.0852 (0.209)		-0.247 (0.340)
High support for democracy		0.0490 (0.205)		-0.136 (0.330)
City/suburb		0.0619 (0.129)		0.00131 (0.198)
Neutral			1.028 (0.659)	1.442* (0.659)
Approve			1.770** (0.563)	2.126*** (0.569)
Neutral × May 1, 2021, reform			0.329 (0.832)	0.146 (0.827)
Approve × May 1, 2021, reform			0.569 (0.715)	0.518 (0.714)
Constant	3.657*** (0.0750)	3.313*** (0.313)	1.750** (0.548)	0.122 (0.770)
Observations	397	384	158	158
Adjusted R ²	0.009	0.002	0.211	0.267

***p≤0.001, **p≤0.01, *p≤0.05

Note: Standard errors in parentheses at 95% confidence interval. Reference categories: Disapproval of the president's performance; Male; Low support for democracy; Town/rural area. Presidential approval is measured by AmericasBarometer item M1 (President Bukele job-performance evaluation), available only in Form A of the split-sample 2021 questionnaire, which explains the reduced sample size. LAPOP Lab. (2021). AmericasBarometer El Salvador, 2021 (Version 1.0) [El_Salvador_2021]. Center for Global Democracy, Vanderbilt University. <https://www.vanderbilt.edu/lapop>

AI Declaration

In accordance with the SK2532 AI policy, AI tools such as Claude and ChatGPT were used in this thesis for language clarity, rephrasing, and grammar editing. Moreover, Claude and ChatGPT were used for generating Stata code and for the interpretation of regression coefficients.